AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES

FEDERAL REGISTER

VOLUME 18 NUMBER 64

Washington, Friday, April 3, 1953

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 32]

PART 610—MINIMUM EN ROUTE IFR ALTITUDES

MISCELLANEOUS AMENDMENTS

The minimum en route IFR altitudes appearing hereinafter have been coordinated with interested members of the industry in the regions concerned insofar as practicable. The altitudes are adopted without delay in order to provide for safety in air commerce. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 610 is amended as follows:

1. The caption to Part 610 is amended to read as set forth above.

2. Section 610.13 *Green civil airway No. 3* is amended to read in part:

From—	To—	Minimum altitude
Bay Point, Calif. (FM)	Rio (INT), Calif. (northeast-bound only).	2,000

3. Section 610.18 *Green civil airway No. 8* is amended to read in part:

From—	To—	Minimum altitude
Anchor Point (INT), Alaska.	Homer, Alaska (LFR)	2,500

4. Section 610.101 *Amber civil airway No. 1* is amended to read in part:

From—	To—	Minimum altitude
Hinchinbrook, Alaska, (LFR).[1]	East Cordova (INT), Alaska.	2,000
East Cordova (INT), Alaska.	South Yakataga, Alaska (LFR).	5,000

[1] 3,000′—Minimum crossing altitude at Hinchinbrook (LFR), westbound.

5. Section 610.206 *Red civil airway No. 6* is amended to eliminate:

From—	To—	Minimum altitude
Int. NE crs. Las Vegas, Nev. (LFR), and SW crs. St. George, Utah (VAR).	St. George, Utah (VAR).	9,000
St. George, Utah (VAR).[1]	Bryce Canyon, Utah (VAR).	13,000

[1] 10,000′—Minimum crossing altitude at St. George (VAR), northeast-bound.

6. Section 610.206 *Red civil airway No. 6* is amended by adding:

From—	To—	Minimum altitude
Akron, Colo. (LFR)	North Platte, Nebr. (LFR).	5,500

7. Section 610.223 *Red civil airway No. 23* is amended to read in part:

From—	To—	Minimum altitude
U. S.-Canadian Border	Int. SE crs. Toronto, Canada (LFR), and NE crs. Buffalo, N. Y. (LFR).	1,900
Int. E crs. Buffalo, N. Y. (LFR), and NW crs. Elmira, N. Y. (LFR).	Danville, N. Y. (LF/RBN).	3,500
Danville, N. Y. (LF/RBN).	Elmira, N. Y. (LFR)	3,500
Elmira, N. Y. (LFR)	Branchville (INT), N. Y.	3,500
Branchville (INT), N. Y.	Paterson, N. J. (LF/RBN).	3,000
Paterson, N. J. (LF/RBN).	LaGuardia, N. Y. (LFR).	1,700
LaGuardia, N. Y. (LFR).	St. James (INT), N. Y.	1,500

8. Section 610.240 *Red civil airway No. 40* is amended to read in part:

From—	To—	Minimum altitude
Kodiak, Alaska (LFR)	Abeam Shuyak, Alaska (LF/RBN).	4,000
Abeam Shuyak, Alas- (LF/RBN).	Homer, Alaska (LFR).[1]	6,000

[1] 3,900′—Minimum crossing altitude at Homer (LFR)' southbound.

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Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

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9. Section 610.297 *Red civil airway No. 97* is amended to eliminate:

From—	To—	Minimum altitude
Lakehead, Ontario, Canada (LFR).	Int. N crs. Houghton, Mich. (LFR).	2,800
Int. N crs. Houghton, Mich. (LFR).	Sault Ste. Marie, Mich. (LFR).	2,500

10. Section 610.299 *Red civil airway No. 99* is added to read:

From—	To—	Minimum altitude
Kukaklek (INT), Alaska.	Iliamna, Alaska (LFR).	4,000
Iliamna, Alaska (LFR).	Bruin Bay (INT), Alaska.	5,500

11. Section 610.636 *Blue civil airway No. 36* is amended to read:

From—	To—	Minimum altitude
Int. S crs. Akron, Colo. (LFR), and 268°–088° mag. brg. Goodland, Kans. (RBN).	Akron, Colo. (LFR)	6,000

12. Section 610.1003 *Direct route—Southwest United States* is amended to read in part:

From—	To—	Minimum altitude
Lubbock, Tex. (LFR).	Abilene, Tex. (LFR).	5,200

13. Section 610.6004 *VOR civil airway No. 4* is amended to eliminate:

From—	To—	Minimum altitude
Laramie, Wyo. (VOR)[1].	Cheyenne, Wyo. (VOR).	11,000

[1] 9,500′—Minimum crossing altitude at Laramie (VOR) eastbound.

14. Section 610.6010 *VOR civil airway No. 10* is amended to read in part:

From—	To—	Minimum altitude
Allentown, Pa. (VOR).	Matawan, N. J. (VAR).	2,500

15. Section 610.6025 *VOR civil airway No. 25* is amended to eliminate:

From—	To—	Minimum altitude
Oakland, Calif. (VOR).	Sacramento, Calif. (VOR).	4,000
Sacramento, Calif. (VOR).	Red Bluff, Calif. (VOR).	4,000
Bay Point, Calif. (FM).	Sacramento, Calif. (VOR) (eastbound only).	2,000

16. Section 610.6025 *VOR civil airway No. 25* is amended to read in part:

From—	To—	Minimum altitude
Paso Robles, Calif. (VOR).	Int. 337° T rad. Paso Robles, Calif. (VOR), and 134° T rad. Salinas, Calif. (VOR).	5,000
Int. 337° T rad. Paso Robles, Calif. (VOR), and 134° T rad. Salinas, Calif.	San Francisco, Calif. (VOR).	7,000
San Francisco, Calif. (VOR).	Oakland, Calif. (VOR).	3,000
Oakland, Calif. (VOR).	Ukiah, Calif. (VOR).	6,000
V–25W—Oakland, Calif. (VOR).	Ukiah, Calif. (VOR).	6,000

17. Section 610.6027 *VOR civil airway No. 27* is amended to read in part:

From—	To—	Minimum altitude
Paso Robles, Calif. (VOR).	Salinas, Calif. (VOR).	5,000
Salinas, Calif. (VOR).	Int. 319° T rad. Salinas, Calif. (VOR), and 217° T rad. Oakland, Calif. (VOR).	5,000
Int. 319° T. rad. Salinas, Calif. (VOR), and 217° T. rad. Oakland, Calif. (VOR).	Ukiah, Calif. (VOR).	6,000
V–27E—Salinas, Calif. (VOR).	San Francisco, Calif. (VOR).	6,000
V–27E—San Francisco, Calif. (VOR).	Int. 304° T. rad. San Francisco, Calif. (VOR), and 162° T. rad. Ukiah, Calif. (VOR).	6,000

18. Section 610.6030 *VOR civil airway No. 30* is amended to read in part:

From—	To—	Minimum altitude
Allentown, Pa. (VOR).	Caldwell, N.J. (VOR).	2,500

19. Section 610.6081 *VOR civil airway No. 81* is amended to read in part:

From—	To—	Minimum altitude
Midland, Tex. (VOR).	Lubbock, Tex. (VOR).	5,200

20. Section 610.6110 *VOR civil airway No. 110* is amended to read in part:

From—	To—	Minimum altitude
Int. San Francisco, Calif. (VOR), rad. 218° T and Salinas, Calif. (VOR) rad. 319° T.	San Francisco, Calif. (VOR).	5,000
San Francisco, Calif. (VOR).	Int. San Francisco, Calif. (VOR), rad. 038° T and Modesto, Calif. (VOR) rad. 273° T.	5,000

21. Section 610.6118 *VOR civil airway No. 118* is added to read:

From—	To—	Minimum altitude
Laramie, Wyo. (VOR)[1].	Cheyenne, Wyo. (VOR).	11,000

[1] 10,000′—Minimum crossing altitude at Laramie (VOR), eastbound.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

These rules shall become effective April 7, 1953.

[SEAL] F. B. LEE,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 53–2726; Filed, Apr. 2, 1953; 8:45 a. m.]

TITLE 7—AGRICULTURE

Chapter VIII—Production and Marketing Administration (Sugar Branch), Department of Agriculture

Subchapter I—Determination of Prices

[Sugar Determination 877.5]

PART 877—SUGARCANE: PUERTO RICO

1952–1953 CROP

Correction

In F. R. Doc. 53–805, appearing at page 494 of the issue for Friday, January 23, 1953, the phrase "under this subparagraph" in the last sentence of § 877.5 (b) (4) should read "under this proviso".

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign and Domestic Commerce, Department of Commerce

Subchapter C—Office of International Trade

[6th Gen. Rev. of Export Regs., Amdt. P. L. 34]

PART 399—POSITIVE LIST OF COMMODITIES AND RELATED MATTERS

PLASTICS AND RESIN MATERIALS

Section 399.1 *Appendix A—Positive List of Commodities* is amended in the following particulars:

The following commodities are deleted from the Positive List:

Dept. of Commerce Schedule B No.	Commodity
	Plastics and resin materials:
	Synthetic resins:
	Styrene polymer and copolymer resins containing 60 percent or more styrene in all unfinished forms, except laminated (report butadiene-styrene copolymers of less than 60 percent styrene in 200901):
825210	Polystyrene molding and extrusion compositions, including scrap, except polydichlorostyrene.[1]
825250	Other unfinished forms of polystyrene resins, except polydichlorostyrene.[2]

[1] By this amendment, the entry presently on the Positive List under Schedule B No. 825210 is revised to read as follows: "Polydichlorostyrene molding and extrusion compositions."

[2] By this amendment, the entry presently on the Positive List under Schedule B No. 825250 is revised to read as follows: "Other unfinished forms of polydichlorostyrene; and other unfinished forms of styrene copolymers (includes protective coating resins, resin emulsions, extrusions, scrap, and sheets) (report manufactured plastic products in 981510 and 981590; monofilaments for weaving into fabrics in 384050 and 384052; woven fabrics in 384600-384985)."

This amendment shall become effective as of April 2, 1953.

(Sec. 3, 63 Stat. 7, as amended; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.)

LORING K. MACY,
Director,
Office of International Trade.

[F. R. Doc. 53-2885; Filed, Apr. 2, 1953; 9:32 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Federal Security Agency

PART 170—ENFORCEMENT OF THE TEA IMPORTATION ACT

TEA STANDARDS

Pursuant to the authority of sections 2, 3, and 10 of the Tea Importation Act (29 Stat. 604, as amended by 35 Stat. 163; 41 Stat. 712; 54 Stat. 632, 1237; 55 Stat. 478; 57 Stat. 500; 21 U. S. C. 41), the regulations for the enforcement of this act (21 CFR 170.1 et seq.; 1951 Supp. 170.19, amended 17 F. R. 2601) are amended as indicated below:

§ 170.19 *Tea standards.* (a) Samples for standards of the following teas, prepared, identified, and submitted by the Board of Tea Experts on February 18, 1953, are hereby fixed and established as the standards of purity, quality, and fitness for consumption under the Tea Importation Act for the year beginning May 1, 1953, and ending April 30, 1954:

(1) Formosa Oolong.
(2) Java.
(3) Formosa Black (to be used for Formosa Black, Japan Black, and Congou).
(4) Japan Green.
(5) Gunpowder.
(6) Scented Canton.
(7) Canton Oolong.

These standards apply to tea shipped from abroad on or after May 1, 1953. Tea shipped prior to May 1, 1953, will be governed by the standards which became effective May 1, 1952 (17 F. R. 2601).

(b) The Board of Tea Experts shall prepare duplicate samples of the standards for teas.

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since the amendment is based upon the recommendation of the Board of Tea Experts, which is comprised of experts in teas drawn from the Food and Drug Administration and the tea trade, so as to be representative of the tea trade as a whole.

(Sec. 10, 29 Stat. 607, as amended, 21 U. S. C. 50. Interprets or applies sec. 1, 29 Stat. 604, as amended; 21 U. S. C. 41)

Dated: March 30, 1953.

[SEAL] OVETA CULP HOBBY,
Federal Security Administrator.

[F. R. Doc. 53-2802; Filed, Apr. 2, 1953; 8:50 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter V—Department of the Army

Subchapter B—Claims and Accounts

PART 536—CLAIMS AGAINST THE UNITED STATES

BURIAL EXPENSES

Sections 536.50, 536.51, 536.52 and 536.53 are rescinded and the following substituted therefor:

Sec.
536.50 Persons who may direct disposition of remains.
536.51 Categories of eligibles.
536.52 Authorized expenses.
536.53 Final disposition subsequent to temporary interment.
536.54 Disinterment and reinterment of remains.
536.55 Reimbursement of expenses borne by individuals.
536.56 Burial services, how obtained.
536.57 Cremation.

AUTHORITY: §§ 536.50 to 536.57 issued under R. S. 161; 5 U. S. C. 22.

§ 536.50 *Persons who may direct disposition of remains.* (a) Determination of the person to be recognized as having the primary right to direct the final disposition of the remains of a deceased member of the Army will be made, in the absence of special circumstances such as adjudication of incompetence, or an order of a court of competent jurisdiction determinative of disposition rights, in accordance with the following order of priority (the first three obtain only for married deceased persons):

(1) Widow or widower (if not divorced, legally separated, or remarried).
(2) Sons who have attained majority in the order of seniority.
(3) Daughters who have attained majority in the order of seniority.
(4) Father (unless legal custody of a decedent was in the mother by reason of a court decree or statutory provision).
(5) Mother.
(6) Brothers who have attained majority in the order of seniority.
(7) Sisters who have attained majority in the order of seniority.
(8) Grandfathers (in order of seniority).
(9) Grandmothers (in order of seniority).
(10) Next of kin of legal age in the order of relationship to the deceased, computed in accordance with civil law rules. Seniority will control where persons are of equal degree of relationship, except that males will have priority over females.
(11) Person in loco parentis to the decedent.

(b) The right to direct disposition of remains is considered to be a personal right and cannot be exercised by guardians, committees, or agents of any of the above listed persons solely by reason of their status as such.

(c) To invalidate the claim of a widow or widower, proof must be furnished that final decree of divorce was awarded or that claimant has remarried.

(d) To invalidate the claim of any other person normally recognized by military authorities, it is necessary that documentary evidence, sufficient to establish the right of the claimant under applicable law, be submitted.

(e) Cases in which evaluation of legal documents is required to determine disposition rights, or in which other legal problems exist, may be referred to The Quartermaster General for review and opinion provided resolution within the command is not possible.

§ 536.51 *Categories of eligibles.* (a) Army personnel who die while on active duty, other than the training duty covered in paragraph (b) of this section.

(b) The following members of civilian components of the Army:

(1) Members of the National Guard and of the National Guard of the United States who die:

(i) While on active duty under proper orders in time of peace.

(ii) After relief from active duty while undergoing hospitalization authorized by act June 15, 1936 (49 Stat. 1507; 10 U. S. C. 455 a-d) for disease or injury contracted or incurred in line of duty while on active duty under proper orders in time of peace.

(iii) While enroute to or from or during their attendance at encampments, maneuvers, or other exercises, or at service schools, authorized under the provisions of sections 94, 97, and 99 of the National Defense Act, June 3, 1916 (39 Stat. 206; 32 U. S. C. 63-65).

(iv) After the period of authorized attendance at encampments, maneuvers, or other exercises, or at service schools, while undergoing hospitalization au-

thorized by act June 15, 1936, for a disease or injury contracted or incurred in line of duty while enroute to or from or during their attendance at encampments, maneuvers, or other exercises, or at service schools, authorized under the provisions of sections 94, 97, and 99 of the National Defense Act.

(v) As a result of personal injury (as distinguished from disease) in line of duty while participating in aerial flights prescribed under the provisions of section 92 of the National Defense Act (39 Stat. 206; 32 U. S. C. 62), or who die while undergoing hospitalization, as authorized by act 15 June 1936, for such injury.

(2) Members of the Army Reserve who die:

(i) While on active duty under proper orders in time of peace.

(ii) After relief from active duty while undergoing hospitalization authorized by act June 15, 1936 for disease or injury contracted or incurred in line of duty while on active duty under proper orders in time of peace.

(iii) As a result of personal injury (as distinguished from disease) in line of duty while voluntarily participating, when not on active duty, aerial flights in Government-owned aircraft by proper authority as an incident to their military training, or who die while undergoing hospitalization, as authorized by act June 15, 1936 for such injury.

(3) Members of the Reserve Officers' Training Corps who die:

(i) While en route to or from or during their attendance at camps of instruction held under the provisions of sections 47a and 47d of the National Defense Act. (41 Stat. 778; 10 U. S. C. 441–442) provided that, in the case of death while enroute to or from camp, no undue delay or circumstances are involved in the travel and that the travel is performed over the usually traveled routes.

(ii) After the period of authorized attendance at camps of instruction while undergoing hospitalization authorized by act of June 15, 1936, for disease or injury contracted or incurred in line of duty while enroute to or from or during their attendance at camps of instruction held under the provisions of sections 47a and 47d of the National Defense Act.

(c) Accepted applicants for enlistment in the United States Army.

(d) Enlisted members of the United States Army who are discharged in hospitals and who continue as inmates in said hospitals to the date of death.

(e) Military prisoners who have been discharged or dismissed and who die while still in custody of the United States Army.

(f) The following civilian employees paid from appropriated funds of the Army and/or the Department of the Army:

(1) Employees who die while traveling on official business within the continental limits of the United States.

(2) Employees who die while accompanying troops in the field, or who while accompanying troops in the field, incur injury or contract disease resulting directly in death away from their homes.

(3) Employees in the following categories provided they are American citizens whose homes are in fact the continental United States:

(i) Employees who die while traveling on official business outside the continental limits of the United States.

(ii) Employees who die overseas while on assignment to a post outside the United States, or who die while performing authorized travel to or from such assignment.

(4) Where it is necessary for sanitary reasons to remove the remains of an employee from the grounds on which other employees are located and payment of funeral and burial expenses cannot be effected under the provisions of subparagraphs (1), (2), or (3) of this paragraph and where local municipal authorities will not assume custody of the body, the reasonable expenses of a decent burial may be authorized as an incident to the work on which the decedent was engaged. See 11 Comp. Dec. 789.

(g) Enemy prisoners of war, and interned enemy aliens, who die in military custody.

§ 536.52 *Authorized expenses* — (a) *For active duty personnel; accepted applicants for enlistment; and enlisted personnel discharged in a hospital* (1) Recovery and identification of remains.

(2) Embalming and other preservative measures.

(3) Hearse for removing remains from place of death to funeral director's establishment and for delivery of remains to local cemetery or to railroad station.

(4) One limousine to transport immediate relatives to local cemetery or to the railroad station.

(5) Funeral director's services incident to above items.

(6) Casket, outside box when required, and/or urn.

(7) Cremation upon written request of the legal next of kin.

(8) Clothing.

(i) The clothing of the deceased will be used to clothe the remains, if available and in a clean and serviceable condition.

(ii) The necessary clothing will be provided as follows when decedent's own clothing is not available or is not suitable for use:

(*a*) Issued without charge against the account of the deceased for enlisted personnel.

(*b*) Purchased from funds available for disposition of remains for officers who are not entitled to issue clothing, and for enlisted personnel when issue clothing is not available.

(9) An interment flag is authorized to be furnished to drape the casket containing the remains of personnel included in this paragraph. After the funeral, the flag which draped the casket may be retained by the person who directed disposition of remains.

(10) Transportation.

(i) Necessary transportation is authorized to ship the remains accompanied by an escort to any town or city, in either the United States or its possessions or in a foreign country, designated by the person directing disposition of remains, or to a national or post cemetery, either prior to or after temporary interment.

(ii) If destination designated is a common carrier terminal, common carrier transportation will be used for the entire distance. If destination designated is not a common carrier terminal, common carrier transportation will be used from the place of death to the common carrier terminal nearest the destination and hearse transportation may be used from the common carrier terminal nearest the destination to the destination.

(11) Services incident to interment.

(i) *When interment is made in a private cemetery.* An allowance not to exceed $125.

(ii) *When interment is made in a national or post cemetery.* An allowance not to exceed $75 for services not furnished by the Government.

(b) *For members of civilian components of the Army.* (1) Recovery and identification of remains.

(2) Embalming and other preservative measures.

(3) Hearse for removing remains from place of death to funeral director's establishment and for delivery of remains to local cemetery or to railroad station.

(4) One limousine to transport immediate relatives to local cemetery or to railroad station.

(5) Funeral director's service incident to the above items.

(6) Casket, and outside box when required.

(7) Cremation in lieu of interment, including a suitable urn.

(8) The use of such of the uniform and articles of clothing issued to the decedent as required is authorized.

(9) An interment flag is authorized to be furnished to drape the casket containing the remains of personnel included in this paragraph. After the funeral the flag which draped the casket may be retained by the person who directed disposition of the remains.

(10) Transportation by common carrier of the remains, accompanied by an escort, to the home of the decedent, or to the place where decedent received orders for the period of training upon which engaged at the time of death, or to such other place as the person recognized as having the right to direct disposition of remains may designate, provided that in no case will the cost incurred by the Army for transportation of the remains to the place designated exceed the cost which would have been incurred had the remains been transported to home of decedent, or the place where the decedent received orders, whichever is the greater distance.

(11) Services incident to interment.

(i) *When interment is made in a private cemetery.* An allowance not to exceed $125.

(ii) *When interment is made in a national or post cemetery.* An allowance not to exceed $75 for services not furnished by the Government.

(c) *For military prisoners.* (1) Embalming and other preservative measures.

(2) Casket, and outside box when required.

(3) Hearse, if Government facilities for removing remains from place of

death to funeral director's establishment, and for delivery to local cemetery, are not available.

(4) Use of Government facilities to transport the remains to the nearest post cemetery or post section of a national cemetery, if required in the interest of the Government.

(5) Interment at the place of death, or expenses incident to interment not to exceed $125.

(d) *For civilian employees described in § 536.51 (f) (1).* (1) Preparation of remains at a cost not to exceed $150, to include embalming, cremation if requested, clothing, and casket.

(2) Transportation.

(i) Hearse service, to include removal of remains from place where death occurred to a funeral director's establishment, removal from funeral director's establishment to a common carrier, and one removal at the place of interment from the common carrier to a funeral director's establishment or other place of immediate delivery.

(ii) Procurement of burial and shipping permits.

(iii) Furnishing of outside box for shipment (including, when necessary, the sealing of such shipping case). No allowance for outside case will be made if conveyance is by hearse.

(iv) Shipment of remains by common carrier to the home or official station of the decedent or to such other place as may be designated as the appropriate place of interment, provided that in no case will the cost incurred by the Army for transportation of the remains to the place designated exceed the cost which would have been incurred had the remains been transported to the home or the official station of the decedent, whichever is the greater distance. Transportation expenses of an escort for the remains will not be allowed; however, this will not be construed to prohibit the use by an escort of one of the two tickets required to ship the remains as baggage by railroad. Instead of conveyance by common carrier, removal of remains overland by hearse (including ferry charges, bridge tolls, and similar items) may be allowed provided that the total charges for transportation shall not exceed the total cost of transportation had conveyance been made by common carrier.

(e) *For civilian employees described in § 536.51 (f) (2) and (3).* (1) Preparation of remains to include all the ordinary costs of:

(i) Embalming.

(ii) Cremation.

(iii) Necessary clothing.

(iv) Casket or container suitable for shipment to the place of interment.

(v) Any expenses necessarily incurred in complying with local laws and laws at the port of entry in the United States relative to the preparation of bodies for transportation and burial.

(2) Transportation.

(i) Hearse service, to include removal of remains from the place where death occurred to a funeral director's establishment, removal from the funeral director's establishment to a common carrier, and one removal at the place of interment from the common carrier.

(ii) Shipment of remains by common carrier to the home or official station of the decedent, or to such other place as may be designated as the apropriate place of interment, provided that in no case will the cost incurred by the Army for transportation of the remains to the place designated exceed the cost which would have been incurred had the remains been transported to the home or official station of the decedent, whichever is the greater distance. Transportation expenses of an escort for the remains will not be allowed; however, this will not be construed to prohibit the use by an escort of one of the two tickets required to ship the remains as baggage by railroad. The remains may be transported by means other than by common carrier, provided that when conveyance by common carrier is available there shall be allowed toward the expense of such other transportation an amount not in excess of the sum allowable had the remains been transported by common carrier.

(f) *For enemy prisoners of war or interned enemy aliens.* (1) Embalming.

(2) Casket, and outside box when required.

(3) Hearse for removal of remains from the place of death to the funeral director's establishment and for delivery from the funeral director's establishment to the local cemetery, providing Government facilities are not available.

(4) Cremation and suitable urn for the ashes, in lieu of casket and embalming.

(5) Interment at the place of death or expenses incident to interment not to exceed $125.

(6) Transportation.

(i) When death occurs at a prison camp located on Government-owned ground, no transportation is authorized.

(ii) When death occurs at a prison camp located on leased land, remains will be transported to the nearest prisoner of war cemetery, post cemetery, or post section of a national cemetery. Government motor transportation will be used unless the distance to such cemetery precludes the use of motor transportation, in which event common carrier transportation to the nearest such cemetery is authorized.

(iii) When death occurs while in Army custody enroute to or from an internment camp, common carrier transportation to the nearest prisoner of war cemetery, post cemetery, or post section of a national cemetery is authorized.

§ 536.53 *Final disposition subsequent to temporary interment.* (a) If temporary disposition is required because of local health laws, the commander at the place of death will be responsible for arranging suitable temporary burial which may, at his discretion, and contingent upon the facilities available, be in a national or post cemetery (provided decedent is eligible for such burial) or in a private cemetery. If temporary disposition must be made by military authorities pending determination as to the person having the right to direct disposition, or because of inability to contact such person, interment of remains of personnel eligible for such burial will be made in the national cemetery nearest the place of death except that in those instances of death overseas of an individual whose home is in the United States, interment will be in the national cemetery nearest the United States port of entry. Subsequently, remains may be disinterred and shipped at Government expense in accordance with the expressed wishes of the person having the right to direct disposition. In such cases an estimate will be obtained of the cost of disinterring the remains and preparing them for shipment and the amount to be expended shall be approved by the commander of the continental army area in which the remains were temporarily interred or the commander having jurisdiction over the oversea command in which the remains were temporarily interred.

(b) If disposition of remains is made at Government expense in accordance with the expressed wishes of the person having the right to direct disposition, subsequent disinterment or shipment of the remains will not be made at Government expense.

(c) In time of war or during major military operations, or similar emergency, when conditions or shipping restrictions do not permit normal procedures in the care and disposition of remains, temporary interments will be accomplished in the best possible manner that circumstances permit and remains subsequently may be disinterred and shipped home at Government expense.

§ 536.54 *Disinterment and reinterment of remains.* Removal of remains from cemeteries at abandoned Army installations and from fields, abandoned graves, or abandoned private or city cemeteries, will be effected only upon authorization of The Quartermaster General. In such cases an estimate will be obtained of the cost of disinterring the remains and preparing them for shipment and the amount to be expended shall be approved by The Quartermaster General.

(a) Remains of personnel interred in cemeteries at abandoned Army installations may be disinterred, shipped to the nearest permanent Army post or national cemetery, and reinterred therein at Government expense.

(b) Remains of Federal soldiers, sailors, or marines interred in fields, abandoned graves, or abandoned civilian cemeteries may be disinterred, shipped to the nearest national cemetery, and reinterred therein at Government expense.

§ 536.55 *Reimbursement of expenses borne by individuals.* (a) When funeral expenses for personnel covered by §§ 536.50–536.57, with the exception of military prisoners, prisoners of war and interned enemy aliens, and civilian employees coming under the provisions of § 536.51 (f) (4) are borne by individuals, reimbursement may be made to such individuals of the amount allowed by the Government for funeral expenses authorized in § 536.52.

(b) In the case of civilian employees enumerated in § 536.51 (f) (1), applicable limitation is contained in § 536.52 (d). For all other personnel, if at the

time and place of death a Uniform Burial Contract was in force, the amount to be allowed for items normally obtained under such contract will be limited to the sum that such contract would have allowed for a similar case. However, if no such contract was in effect at the time and place of death, determination of the amount to be allowed will be made by The Quartermaster General. It is not compulsory for relatives to utilize the services of the contract funeral director where a contract is in effect, but the Department of the Army may allow for reimbursement on the items covered by the contract only the amount the Department would have paid thereunder for such items.

§ 536.56 *Burial services, how obtained*—(a) *By individuals.* (1) It is not compulsory for relatives to utilize the services proffered by military authorities. In the event of death of any individual covered in § 536.51, regardless of the place of death, relatives may make their own arrangements for care and disposition of the remains. Reimbursement for expenses incurred and paid may not, however, exceed the amount for which the Army could have obtained all required services and merchandise. The amount to be allowed by the Army for such services and merchandise will be determined by The Quartermaster General in accordance with applicable limitations contained in §§ 536.50–536.57. Instructions concerning information to be furnished relatives regarding maximum allowances will be promulgated annually by The Quartermaster General.

(2) When relatives assume custody of remains and make all arrangements for their care and disposition, the Army is absolved of all mortuary responsibility, including that of inspection and of accomplishment of DA AGO Form 10–15 (Report of Preparation and Disposition of Remains.)

(3) The official permanent station of a decedent should be advised immediately when other military authorities provide services, render any assistance, or furnish information to relatives or funeral directors.

(4) Army authorities at decedent's official permanent station are responsible for advising relatives as follows concerning submission of a valid claim:

(i) The person who paid the bill of the funeral director concerned may obtain reimbursement in the amount found allowable by submitting to The Quartermaster General a request for reimbursement accompanied by an itemized, receipted invoice in quadruplicate.

(ii) If relatives do not pay the funeral director concerned, the funeral director may obtain payment of the amount found properly allowable by submitting to The Quartermaster General an itemized invoice in quadruplicate bearing the following certification over his signature:

I certify that the above bill is correct and just and that payment has not been received.

(5) Upon receipt of itemized invoice submitted in accordance with instructions in preceding paragraph, The Quartermaster General will determine the amount to be allowed based upon all factors entering into the case and will forward the claim through the Chief of Finance to the General Accounting Office for settlement.

(b) *By military authorities.* Services and merchandise incident to preparation of remains for shipment or burial will be obtained by military authorities in one of the following ways:

(1) *Under contract.* (i) Whenever possible, and subject to subdivision (v) of this subparagraph, services and merchandise incident to preparation of remains will be obtained by entering into annual contracts with local funeral directors in the vicinity of military installations.

(ii) Such contracts will be accomplished on Uniform Burial Contract Forms in accordance with current Procurement Regulations and instructions promulgated by The Quartermaster General.

(iii) The specifications which form a part of the Uniform Burial Contract forms will be strictly adhered to and no deviations will be made without first obtaining the approval of The Quartermaster General. No changes will be made in the contract form without the prior approval of The Quartermaster General, except where procurement directives require changes in standard forms and clauses.

(iv) Prior to becoming effective, Uniform Burial Contracts will require the approval of the continental army commander or his authorized representative having jurisdiction over the army area in which the installation is geographically located or the commanding general of the oversea command in which the installation is geographically located. Contracts provide that they will not be effective until approved and this fact will be called to the attention of the prospective bidder when bids are invited. In delegating authority to approve Uniform Burial Contracts to a member of his staff, the army commander concerned will, if feasible, select a quartermaster officer qualified by experience in mortuary activities.

(v) A contract will not be awarded at installations where the strength is such that, based on the estimated death rate determined annually by The Surgeon General, the estimated number of deaths is less than five. Under such circumstances, services will be obtained in accordance with subparagraph (2) of this paragraph.

(vi) If death occurs in an area to which a Uniform Burial Contract is applicable, the remains will be prepared under such contract and payment will be made by the finance officer designated in the contract to make payment thereunder.

(2) *By negotiation in an individual case.* (i) When, in the absence of the person having the right to direct disposition or at the specific request of such person, Army authorities are responsible for arranging for preparation of remains for burial or shipment. If no Unifom Burial Contract is in effect, the required services in each individual case will be obtained by negotiation.

(ii) In any instance in which relatives have already made arrangements with a funeral director for preparation of remains, or in which relatives wish to select the merchandise to be used, Army authorities should make no attempt to participate in or interfere with the arrangements. Participation of Army authorities under such circumstances should be confined solely to advising relatives of their right to make claim for reimbursement in whatever amount The Quartermaster General may determine to be allowable.

(iii) The purchasing and contracting officer will, if possible, obtain from two or more funeral directors, price quotations for the following items and services as specified in the Uniform Burial Contract form:

(*a*) Embalming will include all services set out in Specifications 1b of the Uniform Burial Contract form.

(*b*) At the request of relatives of the decedent or of the commanding officer of his official permanent station, Army authorities may arrange for funeral services provided remains are not to be interred locally.

(*c*) Casket, and outside shipping case when required.

(*d*) Delivery by hearse to either a local cemetery or to a railroad station for shipment.

(*e*) One limousine for the immediate family to a local cemetery or the railroad station, when required.

(iv) Costs will vary in such cases depending upon circumstances and cause of death, condition of remains, local facilities, etc.; however, the costs will be kept to the minimum obtainable under the standards set forth in the Uniform Burial Contract form.

(v) Services and prices agreed upon between the purchasing and contracting officer and a funeral director will be incorporated in a written agreement and, after services have been satisfactorily rendered, the purchasing and contracting officer will place the invoice of the funeral director in line for payment by the local disbursing officer.

(vi) Regardless of whether remains are interred locally or are shipped to a designated destination, the following items are incident to interment and will not be negotiated for by Army authorities: grave site; opening and closing the grave; cemetery equipment such as lowering device, greens, and canopy; vault; flowers; flower car; obituary notices; music; services of a minister; and hearse, limousine, and funeral services except as specifically provided in subdivision (iii) of this subparagraph.

(*a*) These items, if desired, must be arranged and paid for by relatives.

(*b*) Interment allowance may be made as reimbursement to the person who pays for such services.

(vii) Except when remains are to be interred locally, transportation to the place designated by the person directing disposition of remains will be made by common carrier if there are common carrier facilities.

(*a*) Hearse transportation to destination will be obtained by Army authorities through negotiation only when there are no rail facilities.

(b) If for any reason relatives prefer hearse transportation instead of rail transportation, they will be responsible for making their own arrangements and effecting payment therefor.

(c) In any instance in which relatives arrange for such hearse transportation, they should be advised that a claim may be submitted as provided in paragraph (a) (4) of this section, but that reimbursement may not exceed the amount for which the Army could have shipped the remains by rail.

§ 536.57 *Cremation*—(a) *When remains may be cremated.* Remains may be cremated only upon written request of the legal next of kin of the decedent.

(1) Remains will not be cremated in any instance in which there is any doubt whatever as to what person may have the ultimate legal right to direct disposition.

(2) Under no circumstances will cremation be suggested by military authorities as an expedient in effecting disposition of remains, and every effort will be made to discourage such suggestion by a funeral director.

(3) Since to certain people cremation is the accepted mode of disposal of remains because of religious tenets or custom, there is no objection to informing relatives of decedents of oriental ancestry that cremation may be effected upon written request of the legal next of kin.

(b) *Where remains may be cremated.* Cremation may take place at:

(1) Place of death, prior to shipment or local interment.

(2) En route to final destination.

(3) After arrival at final destination.

(c) *Cremation at place of death within continental United States prior to shipment or local interment.* (1) When next of kin has requested cremation prior to shipment to final destination, normal procedures for preparation of the remains will be followed. The purchasing and contracting officer should negotiate with the contractor for the use of a transfer case, meeting applicable health regulations, to transport the remains to a crematory for cremation. The transfer case will then be returned to the contractor. No metal casket will be furnished. The purchasing and contracting officer will negotiate for the purchase of a suitable urn in which the cremated remains will be placed and will execute a purchase order for cremation, including transportation to local crematory, and a suitable urn for the ashes.

(2) When next of kin requests cremation at place of death subsequent to funeral services, one of the following procedures will be followed:

(i) *When the cremated remains are to be interred in a local cemetery.* The metal casket as provided under the Uniform Burial Contract may be furnished. After funeral services, the casketed remains may be taken in contractor's conveyance to the crematory for cremation. After cremation, the ashes may be placed in a receptacle provided by the crematory and such receptacle may then be replaced in the metal casket for interment in the cemetery. If the next of kin does not desire the ashes buried in the casket, such next of kin will arrange for the purchase of an urn for the ashes at his own expense and will assume responsibility for the disposition of the metal casket.

(ii) *When the cremated remains are to be delivered to the next of kin for further disposition.* The next of kin should be offered a choice of the following:

(*a*) The Government will furnish a metal casket, as provided in the Uniform Burial Contract, for the funeral services. After funeral services the next of kin will accept custody of the remains and arrange with the crematory for cremation and an urn for the ashes. Disposition of the metal casket also will be the responsibility of the next of kin. Reimbursement for the cost of cremation may be made to next of kin upon application therefor to The Quartermaster General, Department of the Army, Washington 25, D. C., accompanied by itemized, receipted bill in quadruplicate, but no reimbursement may be made for the urn.

(*b*) The next of kin will furnish a casket for the funeral services and the Government will arrange for and pay all costs for cremating the remains and furnishing a suitable urn for the ashes.

(d) *Cremation enroute from place of death to final destination within continental United States.* When next of kin requests cremation prior to arrival of remains at destination, and there is no crematory at or near the place of death, normal procedures for preparation of the remains will be followed. The purchasing and contracting officer will negotiate with the contractor for the use of a transfer case meeting applicable health regulations (including a metal lined box, when required) to transport the remains to the crematory. If permitted by health laws, the transfer case can be returned to the purchasing and contracting officer who in turn will return it to the funeral director from which it was obtained, or the case can be cremated with the remains. The purchasing and contracting officer arranging for cremation also will arrange for any required hearse transportation from the railroad station to the crematory and for a suitable urn for the ashes. A crematory which is situated in the direct line of travel from the place of death to the final destination and which is most advantageous to the Government with regard to distance, transportation charges, and cremation charges, will be selected. The escort will accompany the remains to the crematory and will receive the urn containing the ashes and perform his usual duties in accompanying the ashes to destination and delivering them and the flag to the consignee. Transportation will be provided by the transportation officer for escort and remains to point of cremation and for the escort alone from the place of cremation to final destination and return to the installation effecting disposition.

(e) *Cremation at final destination, within continental United States.* The next of kin may choose to have remains cremated after arrival at destination, either before or after funeral services. In either event, the escort will deliver the remains to the consignee, obtain a receipt for the remains, and may, if the next of kin so desires and his travel orders permit, accompany the remains to the crematory and deliver the ashes and flag to the designated consignee. All expenses incident to cremation and a suitable urn for the ashes must be paid by next of kin or other person arranging for cremation. Reimbursement for the cost of cremation, including transportation of the remains to the crematory, may be made by the Government upon receipt of request for cremation by The Quartermaster General, Department of the Army, Washington 25, D. C. When the casket in which the remains were shipped has been provided at Government expense, no reimbursement will be made by the Government for the urn, and next of kin will assume responsibility for the disposition of the metal casket provided.

(f) *Costs.* The costs of cremation, including the cost of a suitable urn if no casket was furnished, and any costs necessary to transport the remains to a crematory, are allowable expenses in addition to the cost of preparation, shipment, and allowance toward interment. If cremation is arranged for by the purchasing and contracting officer, cost will not exceed the prevailing rate in the locality in which cremation is effected; and the amount allowed for cremation arranged by relatives will be in accordance with the prevailing charge in the locality in which remains were cremated. The cost of a suitable urn normally should not exceed $100.

(g) *Cremation when death occurs in an oversea command.* (1) Remains will be cremated only at the specific request of the legal next of kin. The act May 17, 1938, provides for cremation only upon written request of the nearest relative and, even in those cases in which cause of death or conditions of remains precludes shipment of the body in accordance with the wishes of the person recognized as having the right to direct disposition of remains, cremation will be effected only with the consent of the legal next of kin.

(2) When legal next of kin requests that remains be cremated prior to delivery to a final destination in the United States, remains will be:

(i) Cremated in the oversea command if facilities for cremation are available.

(*a*) Remains will be prepared in the normal manner except that metal casket will not be furnished.

(*b*) A transfer case or temporary container will be used, if required, to transport the remains to the crematory.

(ii) Prepared and casketed in the normal manner and shipped to a United States port of entry for cremation at the port.

[SR 600–570–1, Feb. 4, 1953]

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 53–2819; Filed, Apr. 2, 1953; 8:53 a. m.]

PART 536—CLAIMS AGAINST THE UNITED STATES

PART 537—CLAIMS ON BEHALF OF THE UNITED STATES

MARITIME CLAIMS

The following amendments to Subchapter B are issued:

1. Part 536 is amended by rescinding paragraph (a) of § 536.45 and substituting the following paragraph (a) in lieu thereof:

§ 536.45 *Maritime claims under Public Law 186, 82d Congress*—(a) *General*—(1) *Purpose and scope.* This section, published with the prior approval of the Secretary of Defense, sets forth the policies of the Department of the Army relative to the settlement or compromise, under the act October 20, 1951 (65 Stat. 572; 10 U. S. C. Supp. 1861–1866) of all claims against the United States not the subject of pending litigation, which arise from marine accidents and incidents. Set forth in this section are the policies pertaining to section 1 of the act which provides for the settlement or compromise of claims for damage to, or loss or destruction of property, or personal injury or death caused by vessels of, or in the service of, the Department of the Army, and compensation for towage and salvage services, including contract salvage, rendered to such vessels, where the net amount payable by the United States, as settled or compromised, does not exceed $500,000.

(2) *Related statutes.* With respect to claims against the United States for which suits in admiralty may be brought against it under the acts mentioned immediately below, the act October 20, 1951, merely supplements those statutes and authorizes the administrative settlement or compromises of such of those claims as are within its scope. The Tucker Act, March 3, 1887 (24 Stat. 505), as amended and codified in Title 28 U. S. C. by the act June 25, 1948 (62 Stat. 869), the Suits in Admiralty Act, March 9, 1920 (41 Stat. 525; 46 U. S. C. 741–752), the Public Vessels Act, March 3, 1925 (43 Stat. 1112; 46 U. S. C. 781–790), as amended by the act June 19, 1948 (62 Stat. 496; 46 U. S. C. 740), and the Rivers and Harbors Act, March 3, 1899, as amended (30 Stat. 1151; 33 U. S. C. 401–534).

* * * * *

2. Part 537 is amended by rescinding paragraph (a) of § 537.7 and substituting the following paragraph (a) in lieu thereof:

§ 537.7 *Maritime claims under Public Law 186, 82d Congress*—(a) *Purpose and scope.* This section, published with the prior approval of the Secretary of Defense, sets forth the policies of the Department of the Army relative to the settlement or compromise, under the act October 20, 1951 (65 Stat. 572; 10 U. S. C. Supp. 1861–1866), of all claims in favor of the United States not the subject of pending litigation, which arise from marine accidents and incidents. Set forth in this section are the policies pertaining to sections 2 and 3 of the act which provide for the settlement or compromise of claims for damage cognizable in admiralty in a district court of the United States, and all claims for damage caused by a vessel or floating object to property of the United States under the jurisdiction of the Department of the Army, or property for which the Department of the Army may have assumed, by contract or otherwise, any obligation to respond for damage thereto, where the net amount payable to the United States does not exceed $500,000, and claims in any amount for salvage services (including towage) rendered by the Department of the Army to any vessel.

* * * * *

[AR 25–60, Sept. 18, 1952] (Secs. 1–6, 65 Stat. 573; 10 U. S. C. 1861–1866)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 53–2820; Filed, Apr. 2, 1953; 8:53 a. m.]

Subchapter I—Transport

PART 633—TRANSPORTATION OF INDIVIDUALS

REMAINS

Section 633.6 is rescinded and the following substituted therefor:

§ 633.6 *Remains*—(a) *Methods of shipment*—(1) *Within the continental limits of the United States, exclusive of Alaska.* Shipments from place of death in the United States to the place of interment in the United States, from place of death in the United States to a United States port of embarkation, from a United States port of debarkation to the place of interment in the United States, and from a port of debarkation in the United States to a port of embarkation in the United States for reshipment will be made by one of the following methods:

(i) By rail as baggage, with an escort.

(ii) By railway express, without an escort.

(iii) By hearse provided common carrier transportation is not available. When the destination to which remains are being shipped is not a railhead, remains will be shipped by rail as baggage, or by railway express, to the railhead nearest the destination and the consignee will be requested to transport the remains from the nearest railhead to the destination and bill the shipping installation for the expense thereof.

(2) *Between two oversea points and between oversea points and United States ports of entry.* (i) Government means of transportation will be utilized wherever possible in effecting shipment of remains from oversea points to ports of debarkation in the continental United States, from ports of embarkation in the United States to oversea points, and between two oversea points.

(ii) For any distance that the foregoing prescribed means of transportation cannot be used, or is considered impracticable, shipment may be made by the most economical means of commercial transportation.

(b) *Stopovers en route to final destination.* (1) Circuitous routing to permit stopover en route to final destination is authorized, provided:

(i) Request is made by the person directing disposition of remains.

(ii) Backhaul is not involved.

(iii) Cost to the Government does not exceed that of direct shipment to destination.

(2) To insure that the cost to the Government does not exceed the cost of direct shipment to destination, advance payment of any excess cost will be secured from the person directing disposition of remains.

(3) The commanding officer of the shipping installation will be responsible for insuring that:

(i) The person directing disposition of remains is advised that cost to the Government may not exceed that of direct shipment and that any costs incurred at the stopover point must be paid from private funds.

(ii) Routings and comparative costs are obtained and evaluated.

(iii) Advance payment, if required, is secured from the person recognized as having the right to direct disposition of remains.

(c) *Airlift within the continental United States.* (1) Shipment of remains within the continental United States by Government aircraft is not authorized.

(2) Remains may be shipped by commercial aircraft provided relatives arrange and pay for such shipment. If relatives elect to arrange for shipment of remains by commercial aircraft at private expense, the following procedures will govern:

(i) No escort will be furnished.

(ii) The Army is absolved of all responsibility upon release of remains to the commercial airline.

(iii) A representative of the commercial airline will be required to certify that remains were received in good condition and that, on behalf of relatives, the airline assumes all further responsibility.

(iv) Prior to release of remains, the person directing disposition thereof will be advised of the above provisions.

(v) Such individual also will be advised that a request for reimbursement of expense incurred for shipment of remains by commercial aircraft, accompanied by a receipted invoice, may be submitted to The Quartermaster General, but that reimbursement is limited to the amount for which the Army could have shipped the remains by rail.

[SR 600–570–1, Feb. 4, 1953] (R. S. 161; 5 U. S. C. 22)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 53–2821; Filed, Apr. 2, 1953; 8:54 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans' Administration

PART 12—DISPOSITION OF VETERANS' PERSONAL FUNDS AND EFFECTS

NONDESIGNEE CASES

In § 12.5, paragraph (a) is amended to read as follows:

§ 12.5 *Nondesignee cases.* (a) If there exists no designee at the time of death at a hospital, domiciliary, or regional office of a veteran admitted as competent, or the designee fails or refuses to claim the funds and effects as defined in § 12.0 (a) within 90 days following the mailing of notice to such designee, the manager will take appropriate action to dispose of the effects to the person or persons legally entitled thereto, i. e., the executor or administrator of the decedent, or, if no notice of such an appointment has been received, to the decedent's widow, child, grandchild, mother, father, grandmother, grandfather, brother, or sister, in the order named. Subject to the applicable provisions of §§ 12.3 and 12.4, such delivery may be made at any time before the sale contemplated by § 12.9 to the designee or other person entitled under the facts of the case. Delivery will be made to the person entitled to priority as prescribed in this paragraph, unless such person waives right to possession, in which event delivery will be to the person, if any, in whose favor such prior entitled person waives right to possession. If the waiver is not in favor of a particular person or class, delivery will be to the person or persons next in order of priority under this paragraph. If in any case there be more than one person in the class entitled to priority, initially or by reason of waiver, delivery will be made only to their joint designated agent (who may, but need not, be one of the class), or to one of such class in his own behalf upon written waiver of all others of the class entitled thereto. The guardian of a minor or incompetent may waive his ward's prior right to possession.

* * * * *

(Sec. 10, 52 Stat. 1192, 55 Stat. 871; 38 U. S. C. 16i, 17j)

This regulation is effective April 3, 1953.

[SEAL] H. V. STIRLING,
Deputy Administrator.

[F. R. Doc. 53-2848; Filed, Apr. 2, 1953; 8:57 a. m.]

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

SUBPART B—EDUCATION AND TRAINING

MISCELLANEOUS AMENDMENTS

1. Section 21.200 is revised to read as follows:

§ 21.200 *Definition.* A course of vocational rehabilitation, for purposes of Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12 note), is a course of training designed to render a veteran satisfactorily employable in the selected occupation. The course of vocational rehabilitation will not necessarily be confined to vocational training. Subject to other related Veterans' Administration Regulations, such course may consist of or include education or training in elements of a particular occupation or it may include or, in rare instances, it may consist of training designed to correct or remove the handicap of the disability or even the disability itself or a part of it, as for example: training for the correction of speech defects, lip reading for the deafened veteran, etc.

2. In § 21.201, a new paragraph (a) (1) is added and paragraph (c) (3) (i) is amended as follows:

§ 21.201 *Types of courses.* * * *

(a) *School course.* * * *

(1) *Internship courses.* (i) Medical internship courses will be considered school courses when they have been accredited and approved by the Council on Medical Education and Hospitals of the American Medical Association.

(ii) Osteopathic internship courses will be considered school courses when they have been accredited and approved by the American Osteopathic Association.

(iii) No other medical or osteopathic internship courses will be recognized.

* * * * *

(c) *Combination course.* * * *

(3) *Institutional on-farm course.* For purposes of Part VII, a course which is primarily training on a farm combined with related organized group instruction (classroom) both furnished by an educational institution or other educational agency and which has the following constituents:

(i) Organized group instruction (classroom) in agricultural and related subjects of at least 200 hours per year (not less than 8 hours in any 1 month and sufficiently more in other months to aggregate the required 200 hours per year) at an agricultural school or other educational agency.

* * * * *

3. Section 21.204 is revised to read as follows:

§ 21.204 *Maximum duration of the course.* The maximum duration of a course of vocational rehabilitation under Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12), may not exceed the period necessary to restore employability. Nor may the maximum duration of a course under Part VII or under both Part VII and Part VIII exceed a period of 4 years except where it may properly be considered and authorized under conditions set forth in § 21.206. Except for veterans entitled under Public Law 894, 81st Congress, as amended, a veteran may not be placed into or be continued in training under Part VII after July 25, 1956 (9 years after the official termination of World War II). Nor may a veteran, except one entitled under Public Law 894, 81st Congress, be placed into training under Part VII in a course of training which cannot be completed by July 25, 1956. Where it is determined that a veteran properly in training under Part VII, except one eligible under Public Law 894, 81st Congress, will not reach employability on or before July 25, 1956, for reasons beyond the control of the veteran, adjustment will be made by revising the veteran's individual training program where practicable to one which can be completed by July 25, 1956, and which will meet the requirements of employability; or, if such cannot be accomplished, by requesting revaluation to another employment objective which will capitalize the training already provided and which can be attained on or before July 25, 1956. If neither adjustment can be accomplished, but it is determined that continuance of the present course to July 5, 1956, will, with available self- or other-aid, assist the veteran to become rehabilitated, he may be permitted, subject to otherwise applicable Veterans' Administration Regulations, to continue such course to said date at which time all obligation of the Veterans' Administration will cease. If the veteran does not desire to pursue the present course to July 25, 1956, or becomes disentitled thereto, he will be placed in status "discontinued" under § 21.283. All pertinent facts will be fully recorded in the trainee's training subfolder.

4. In § 21.205, paragraph (a) is amended to read as follows:

§ 21.205 *Adjusting the duration of the course.* (a) Although Certificate B, VA Form 7-1902f, provides for indicating the estimated length of the course, that fact will not control the length of the course. It is the function and responsibility of the education and training section to prescribe and provide the course of training necessary to restore employability in the occupation which has been determined by the counseling section. The duration of the course will be determined by the education and training section.

* * * * *

5. A new § 21.223a is added as follows:

§ 21.223a *Effective date of induction into training.* The effective date of induction of a veteran into training under Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12), shall be the date the veteran, having met the requirements of § 21.220, actually commenced the prescribed course under that Part, even though the veteran may have pursued the course of training previously under Part VIII, Veterans Regulation 1 (a), as amended, or otherwise: *Provided,* That such date may not be earlier than the date specified by the Veterans' Administration as the date the veteran is authorized to commence the course under Part VII: *And provided further,* That in schools operated on a term basis, the date on which the school requires the veteran to report for prescribed activities, such as registration, may be considered the date of commencing the prescribed course, if the veteran reports on that date. Except upon approval by central office, there shall be no retroactive dating of induction into training under Part VII.

6. Section 21.232 is revised to read as follows:

§ 21.232 *Authority.* Subject to the limitations set forth in §§ 21.230 through 21.242, inclusive, regional managers are authorized to furnish through contract with the training institution or through direct purchase in accordance with current Veterans' Administration regulations governing the procurement of and accounting for trainee's property, supplies of such kind and in such minimum amounts as are necessary to the satisfactory pursuit of a course of vocational rehabilitation in a particular institution.

7. In § 21.234, paragraph (a) is amended to read as follows:

§ 21.234 *General limitations.* (a) The kinds, quality, and amount of supplies that may be furnished to any trainee will be limited to those commonly required by the institution to be owned personally by other trainees not under Veterans' Administration jurisdiction pursuing the same course in the particular institution: *Provided,* That such supplies may not exceed those authorizable under Veterans' Administration regulations. Articles which are commonly on hand as equipment of the training institution for use of all students, trainees, or employees are not to be regarded as supplies required to be owned by trainees and will not be furnished. (See § 21.241 on furnishing special equipment necessary because of the nature of the trainee's disability.)

* * * * *

8. In § 21.252, paragraph (a) is amended to read as follows:

§ 21.252 *Change of employment objective.* (a) A veteran once inducted into training under Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12) (Public Law 16, 78th Congress or Public Law 894, 81st Congress, as amended), ordinarily will be expected to pursue his training program to completion without changing his employment objective insofar as it is possible for him to do so. Accordingly, a change of employment objective will not be approved except where it is clear that such a change is warranted because (1) continuance of the veteran in training for the present objective will result in failure to accomplish bona fide vocational rehabilitation for reasons not within the veteran's control or (2) although the veteran could continue and complete successfully the training for the present employment objective, the veteran desires to change his employment objective and the employment objective desired by the veteran will not require any greater period of time for completion than the present employment objective or, although the employment objective desired by the veteran will require a greater period of time the veteran will pursue independently of the Veteran's Administration a portion of the course for the employment objective desired by him sufficient to enable him to complete the course for the desired objective in no greater period of time than completion of the course for the present employment objective would require; and it is determined by the counseling section that the desired employment objective is more in keeping with the veteran's interests and aptitudes. In the latter instance, the veteran will be informed that upon completing the necessary portion of the course independently of the Veterans' Administration he will be reentered into training provided that in the meantime his disability rating is not reduced to less than compensable and the service-connection of his disability has not been severed.

* * * * *

9. In § 21.281, paragraphs (a) (1) and (2), and (c) are amended, and a new paragraph (d) is added as follows:

§ 21.281 *Status "rehabilitated."* (a) * * *

(1) When the trainee has completed the prescribed course of training as outlined in the individual training program, or although the veteran has not completed the prescribed period of training, it is determined that the duration of the course is longer than necessary and the veteran has completed a sufficient portion of the course to establish clearly that he is employable as a trained worker in the objective occupation. The effective date of rehabilitation will be the day following the day of completion of the prescribed course or the day following the last day of training, whichever is appropriate.

(2) When a trainee while in training status or while properly in interrupted status as required by § 21.282 accepts employment in the same occupation for which he is being trained or in an occupation for which the training received under Part VII has contributed materially toward rehabilitation, and his earnings approximate those of the average trained worker in the occupation, and the employment is such kind that to pursue it full time would be not incompatible with the trainee's disability—thus demonstrating attainment of satisfactory employment: *Provided,* That where such employment is not in the same occupation for which the veteran was being trained, his case will be referred to the counseling section for determination of whether the occupation in which the veteran is employed is compatible with the veteran's disability and aptitudes. The effective date of rehabilitation will be the day following the last day of instruction. If the findings of the counseling section are negative, the veteran will be placed in discontinued status.

* * * * *

(c) When a trainee discontinues training under § 21.283 (a) (1), (2), (3), (4), or (5) and investigation later discloses that the trainee has accepted employment in an occupation for which the training received under Part VII has contributed materially toward employability and medical or other acceptable evidence indicates that the employment is of a kind which to pursue full time would be not incompatible with the trainee's disability, the trainee will be placed in status "rehabilitated" for purposes of the office record effective on the day following the last day of instruction or, where leave was authorized after the last day of instruction in accordance with §§ 21.260 through 21.265, on the day following the last day of leave. In such cases, the veteran shall not receive written notice of rehabilitation and shall not be paid the subsistence allowance ordinarily paid for 2 months following the determination of employability. As indicated, this action is for record purposes only, and the veteran's reentrance into training under the conditions provided for in § 21.288 will not be jeopardized by this recording, where reentrance is otherwise warranted.

(d) A veteran will revert to status "rehabilitated" and the action will be fully documented when the veteran's application for reentrance into training under Part VII following rehabilitation has been approved under § 21.286, but the veteran, after being properly notified that suitable training is available for him and instructed as to the next step he should take:

(1) Fails to respond; or

(2) Declines or refuses reentrance into training; or

(3) Defers reentrance into training for a period exceeding 30 days beyond the scheduled date of reentrance, except where such deferment is due to physical incapacity or other conditions of personal and compelling nature; or

(4) Fails to report and fails to furnish the Veterans' Administration satisfactory reasons for not reporting after receiving notice to report at a designated place and time to recommence training; or

(5) Commences or continues to pursue education or training under Part VIII or Public Law 550, 82d Congress.

10. In § 21.282, paragraphs (d) and (f) are amended to read as follows:

§ 21.282 *Status "interrupted."* * * * (a) * * *

(d) The veteran completes the prescribed course of vocational rehabilitation for an occupation, the practice of which requires passing of an examination for license and such examination is not given on or before the day following the completion of the course or on or before the day following the last day of approved leave. See § 21.287 (a) (1).

* * * * *

(f) The veteran withdraws from training to reenter active military service. See § 21.287 (c) and (d).

11. In § 21.283, that portion of paragraph (a) preceding subparagraph (1) is amended, and a new paragraph (a) (7) is added; paragraph (b) is amended and former paragraph (b) has been redesignated paragraph (c).

§ 21.283 *Status "discontinued."* (a) A trainee under Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12), shall be placed in status "discontinued" effective on the day following the last day of instruction or, where leave was authorized after the last day of instruction in accordance with §§ 21.260 through 21.265, on the day following the last day of leave when it is clearly determined that any one of the following conditions exists:

* * * * *

(7) When a veteran in status "interrupted" after being properly notified that suitable training is available for him and instructed as to the next step he should take:

(i) Fails to respond; or

(ii) Declines or refuses reentrance into training; or

(iii) Defers reentrance into training for a period exceeding 30 days beyond the scheduled date of reentrance, except where such deferment is due to physical incapacity or other conditions of personal and compelling nature; or

(iv) Fails to report and fails to furnish the Veterans' Administration satisfactory reasons for not reporting after receiving notice to report at a designated place and time to commence training; or

(v) Commences or continues to pursue education or training under Part VIII, or Public Law 550, 82d Congress.

(b) A veteran will revert to status "discontinued" and the action will be fully documented when the veteran's application for reentrance into training under Part VII following discontinuance has been approved under § 21.288, but the veteran, after being properly notified that suitable training is available for him and instructed as to the next step he should take:

(1) Fails to respond; or

(2) Declines or refuses reentrance into training; or

(3) Defers reentrance into training for a period exceeding 30 days beyond the scheduled date of reentrance, except where such deferment is due to physical incapacity or other conditions of personal and compelling nature; or

(4) Fails to report and fails to furnish the Veterans' Administration satisfactory reasons for not reporting after receiving notice to report at a designated place and time to commence training; or

(5) Commences or continues to pursue education or training under Part VIII, or Public Law 550, 82d Congress.

(c) In all cases of discontinuance of training, the training officer shall ascertain and record the facts together with evidence justifying the discontinuance.

12. Section 21.287 is revised to read as follows:

§ 21.287 *Reentrance after interruption.* (a) When training has been interrupted for one of the reasons set forth in § 21.282 (a), (b), (c), or (d) and the veteran presents himself for reentrance into training at the appointed time, reentrance will be accomplished even though there has been a reduction in the veteran's disability rating to less than a compensable degree during the period of interruption: *Provided,* That:

(1) Where training was interrupted under § 21.282 (d), reentrance will be effected for the time required to take the examination for license but not for the time required to receive the report of results of the examination.

(b) The case of a veteran whose training was interrupted under § 21.282 (a), (b), (c), or (d) and who fails to report for reentrance at the appointed time will be handled in accordance with the principles governing reentrance into training after discontinuance, as set forth in § 21.288.

(c) Where training was interrupted under § 21.282 (f) and the veteran applies for reentrance into training within 60 days after discharge from service, reentrance into training, if proper under other applicable Veterans' Administration regulations, will be approved to complete the same course that was interrupted even though the veteran's disability rating has been reduced to less than a compensable degree: *Provided,* That:

(1) Except as indicated in the last sentence of this subparagraph, prior to authorizing reentrance into training under Public Law 16, 78th Congress, as amended, a check will be made to ascertain whether the veteran has a compensable disability incurred in or aggravated by service on or after June 27, 1950. If so, the veteran will be referred to the counseling section for a determination of whether need for training exists under Public Law 894, 81st Congress as amended, and if need is found to exist, to determine whether the previous objective is suitable considering the new disability, and if not, to select a suitable objective following which, the veteran will be processed into training under Public Law 894, as amended, and in accordance with instructions governing vocational rehabilitation training of veterans under that law. If the veteran does not have a compensable disability incured in or aggravated by service on or after June 27, 1950, or if need is not found to exist under Public Law 894, as amended, he will be reentered into training under Public Law 16, as amended, in accord with paragraph (c) of this section. If the check as to compensable disability by virtue of service on or after June 27, 1950, and referring the veteran for a determination of whether need for training exists under Public Law 894 will delay unduly reentrance into training—as for example, cause the veteran to miss the beginning of a term or semester—the veteran may be reentered into training under Public Law 16, pending determination of entitlement under Public Law 894, as amended, with the understanding that if he is found entitled under the latter law, his case will be reprocessed under instructions governing vocational rehabilitation under that law.

(d) Where training was interrupted under § 21.282 (f) and the veteran applies for reentrance into training after having been discharged from service for more than 60 days, the veteran will be placed in status "discontinued" and the veteran's case will be handled in accordance with § 21.288.

13. The text of § 21.288 is revised and designated paragraph (a) and a new paragraph (b) is added as follows:

§ 21.288 *Reentrance after discontinuance.* (a) When a veteran, whose training was discontinued under one of the conditions set forth in § 21.283 (a) (1), (2), (3), (4), or (5), applies for reentrance into training under Part VII, Veterans Regulation 1 (a), as amended (38 U. S. C. ch. 12) (Public Law 16, 78th Congress or Public Law 894, 81st Congress, as amended), due consideration will be given to the facts in the individual case, and, if the reasons for discontinuance have been removed, and if the veteran's disability rating has not been reduced to less than a compensable degree and, if, following that determination, need for vocational rehabilitation is reestablished, the veteran may be reentered into training: *Provided,* That the veteran may not be reentered into training for an employment objective other than the previous employment objective for which he was pursuing training at the time of discontinuance except where it is clear that a change of employment objective is warranted because (1) for the veteran to resume training for the previous objective would result in failure to accomplish bona fide vocational rehabilitation for reasons not within the veteran's control, or (2) although the veteran could successfully resume and complete training for the previous employment objective, the veteran desires to change his employment objective and the employment objective desired by the veteran will not require any greater period of time for completion than completion of the previous employment objective and it is determined by the counseling section that the desired employment objective is more in keeping with the veteran's interests and aptitudes.

(b) Where a veteran who meets all the other requirements of paragraph (a) of this section for reentrance into training and who could successfully resume training for the previous employment objective, desires an employment objective which requires a greater period of time than the previous objective and which the counseling section determines is more in keeping with his interests and aptitudes, he will be informed that if he will pursue independently of the Veterans' Administration a portion of the course for the employment objective desired by him sufficient to enable him to complete the remainder in no greater period of time than completion of the present employment objective would require, upon request he will be reentered into training under Part VII, Veterans Regulation 1 (a), as amended (Public Law 16, 78th Congress or Public Law 894, 81st Congress, as amended) to complete the remainder of the course: *Provided,* That in the meantime, his disability rating is not reduced to less than compensable and the service-connection of his disability is not severed.

(Sec. 2, 46 Stat. 1016, sec. 7, 48 Stat. 9, sec. 2, 57 Stat. 43, as amended, sec. 400, 58 Stat. 287, as amended; 38 U. S. C. 11a, 701, 707, ch. 12 note. Interprets or applies secs. 3, 4, 57 Stat. 43, as amended, secs. 300, 1500–1504, 1506, 1507, 58 Stat. 286, 300, as amended; 38 U. S. C. 693g, 697–697d, 697f, g, ch. 12 note)

This regulation is effective April 3, 1953.

H. V. STIRLING,
Deputy Administrator.

[F. R. Doc. 53-2847; Filed, Apr. 2, 1953; 8:57 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 886]

NEW MEXICO

EXTENDING BOUNDARIES OF SANTA FE NATIONAL FOREST, AND REVOKING EXECUTIVE ORDER NO. 8459 OF JUNE 27, 1940

By virtue of the authority vested in the President by section 24 of the act of March 3, 1891 (26 Stat. 1103; 16 U. S. C. 471) and the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and pursuant to section 4 of the act of June 28, 1952 (66 Stat. 285) and Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

The boundaries of the Santa Fe National Forest are hereby extended to include the following-described public lands in New Mexico; and, subject to valid existing rights, such lands are hereby added to and reserved as a part of the said national forest and hereafter shall be subject to all laws and regulations applicable thereto:

NEW MEXICO PRINCIPAL MERIDIAN

T. 13 N., R. 15 E.,
Sec. 25, lot 1;
Sec. 36, lots 1, 2, 3, and 4.

The areas described aggregate 116.03 acres.

Executive Order No. 8459 of June 27, 1940, temporarily withdrawing the above-described lands and reserving them for use by the Farm Security Administration of the Department of Agriculture for the purpose of resettling farm families residing in or near the community of El Pueblo, in San Miguel County, is hereby revoked.

DOUGLAS MCKAY,
Secretary of the Interior.

MARCH 28, 1953.

[F. R. Doc. 53-2786; Filed, Apr. 2, 1953; 8:45 a. m.]

[Public Land Order 887]

CALIFORNIA

PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 6206 OF JULY 16, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

Executive Order No. 6206 of July 16, 1933, withdrawing certain public lands in California in aid of proposed legislation withdrawing the lands for the protection of the water supply of the City of Los Angeles, is hereby revoked so far as it affects the following-described lands:

MOUNT DIABLO MERIDIAN

T. 19 S., R. 37 E.,
Sec. 17, SE¼NE¼, N½NE¼, and NE¼SE¼.

The areas described aggregate 160 acres.

These lands are unsuited for agriculture, having a sandy soil impregnated with alkali. The vegetation is sparse and includes salt grass, wire grass, and shadscale. The grazing value is small and seasonal. The lands are mainly suitable for disposal at public sale or through exchange or selection. It is unlikely that they will be classified for any other disposition, but any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not become effective to change the status of the described lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, location, and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended.

Information showing the periods during which and the conditions under which veterans and others may file applications for these lands may be obtained on request from the Manager of the Land Office, Los Angeles, California.

DOUGLAS MCKAY,
Secretary of the Interior.

MARCH 28, 1953.

[F. R. Doc. 53-2787; Filed, Apr. 2, 1953; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter A—General Rules and Regulations

[S. O. 865, Amdt. 32]

PART 95—CAR SERVICE

DEMURRAGE ON FREIGHT CARS

At a session of the Interstate Commerce Commission, Division 3 held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of Service Order No. 865 (15 F. R. 6197, 6256, 6330, 6452, 7800; 16 F. R. 320, 819, 1131, 2040, 2894, 3619, 5175, 6184, 7359, 8583, 9901, 10994, 11313, 12096, 13102; 17 F. R. 896, 1857, 2850, 3166, 3886, 4169, 4823, 4824, 5193, 5467, 5771, 5772, 5953, 6558; 18 F. R. 37), and good cause appearing therefor: It is ordered, that:

Section 95.865 *Demurrage on freight cars* of Service Order No. 865 be, and it is hereby further amended by substituting the following paragraph (e) for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., June 30, 1953, unless otherwise modified, changed, suspended or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., March 31, 1953.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2838; Filed, Apr. 2, 1953; 8:56 a. m.]

[S. O. 865, Amdt. 33]

PART 95—CAR SERVICE

DEMURRAGE ON FREIGHT CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of Service Order No. 865 (15 F. R. 6197, 6256, 6330, 6452, 7800; 16 F. R. 320, 819, 1131, 2040, 2894, 3619, 5175, 6184, 7359, 8583, 9901, 10994, 11313, 12096, 13102; 17 F. R. 896, 1857, 2850, 3166, 3886, 4169, 4823, 4824, 5193, 5467, 5771, 5772, 5953, 6558; 18 F. R. 37), and good cause appearing therefor: It is ordered, that:

Section 95.865 *Demurrage on freight cars* of Service Order No. 865 as amended, be, and it is hereby suspended until 11:59 p. m., June 30, 1953, on all freight cars except cars described in the current Official Railway Equipment Register, Agent M. A. Zenobia's I. C. C. 306, supplements thereto and reissues thereof, as Class "G"—Gondola Car Type and Class "F"—Flat Car Type.

It is further ordered, that this amendment shall become effective at 11:59 p. m., March 31, 1953, and a copy be served upon the State railroad regulatory bodies of each State, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2839; Filed, Apr. 2, 1953; 8:56 a. m.]

[Rev. S. O. 866, Amdt. 5]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR FREIGHT CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of the provisions of Revised Service Order No. 866 (15 F. R. 6198, 6256, 6573; 16 F. R. 2894, 13102; 17 F. R. 2765, 3458, 4949), and good cause appearing therefor: It is ordered, that:

Section 95.866 *Railroad operating regulations for freight car movement* of Revised Service Order No. 866 be, and it is hereby, amended by substituting the following paragraph (e) hereof for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., June 30, 1953, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., March 31, 1953; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 53-2840; Filed, Apr. 2, 1953; 8:56 a. m.]

[S. O. 869, Amdt. 7]

PART 95—CAR SERVICE

USE OF REFRIGERATOR CARS FOR CERTAIN COMMODITIES PROHIBITED

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of Service Order No. 869 (15 F. R. 8824, 9109; 16 F. R. 2040, 3619, 10994; 17 F. R. 2765, 8582), and good cause appearing therefor: It is ordered, that:

Section 95.869 *Use of refrigerator cars for certain commodities prohibited* of Service Order No. 869 be, and it is hereby amended by substituting the following paragraph (f) hereof for paragraph (f) thereof:

(f) *Expiration date.* This section shall expire at 11:59 p. m., June 30, 1953, unless otherwise modified, changed, suspended or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., March 31, 1953, and that a copy of this order and direction shall be served upon the State railroad regulatory body of each State and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 53-2841; Filed, Apr. 2, 1953; 8:56 a. m.]

[2d Rev. S. O. 872, Amdt. 1]

PART 95—CAR SERVICE

MOVEMENT OF GRAIN TO TERMINAL ELEVATORS BY PERMIT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of the provisions of Second Revised Service Order No. 872 (17 F. R. 10738), and good cause appearing therefor: It is ordered, that:

Section 95.872 Second Revised Service Order No. 872, *Movement of grain to terminal elevators by permit* be, and it is hereby, amended by substituting the following paragraph (e) hereof for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., July 31, 1953, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., March 31, 1953; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 53-2842; Filed, Apr. 2, 1953; 8:56 a. m.]

[S. O. 887, Amdt. 2]

PART 95—CAR SERVICE

SUBSTITUTION OF REFRIGERATOR CARS FOR BOX CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of Service Order No. 887 (17 F. R. 5954, 9777), and good cause appearing therefor: it is ordered, that:

Section 95.887 *Substitution of refrigerator cars for box cars* of Service Order No. 887, be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This section shall expire at 11:59 p. m., June 30, 1953, unless otherwise modified, changed, suspended or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., March 31, 1953.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 53-2843; Filed, Apr. 2, 1953; 8:56 a. m.]

[Rev. S. O. 888, Amdt. 1]

PART 95—CAR SERVICE

MINIMUM LOADING OF CARLOAD TRANSFER FREIGHT REQUIRED

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 30th day of March A. D. 1953.

Upon further consideration of Revised Service Order No. 888 (17 F. R. 9777), and good cause appearing therefor: It is ordered, that:

Section 95.888 *Minimum loading of carload transfer freight required* of Revised Service Order No. 888 be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This section shall expire at 11:59 p. m., July 31, 1953, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 6:59 a. m., April 1, 1953.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interpret or apply secs. 1, 15, 24 Stat. 379, as amended, 384, as amended; 49 U. S. C. 1, 15)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2844; Filed, Apr. 2, 1953; 8:56 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[California No. 56]

CALIFORNIA

SMALL TRACT CLASSIFICATION ORDER NO. 144

MARCH 27, 1953.

Pursuant to the authority delegated to me by the Regional Administrator, Region II, Bureau of Land Management, by Order No. 1, Amendment No. 2, dated January 29, 1953 (18 F. R. 23), Small Tract Classification Order No. 144, California No. 56, dated April 15, 1948, is hereby amended to permit sale to lessees in accordance with 43 CFR 257.13, Circular 1764, as follows:

For homesite purposes only at the appraised price of $100 per tract:

T. 14 N., R. 9 E., S. B. M.
Sec. 30, S½NE¼SE¼, S½SE¼.

For business site and homesite purposes only at the appraised price of $150 per tract:

T. 14 N., R. 9 E., S. B. M.
Sec. 30, N½NE¼SE¼, E½NW¼SE¼, E½NW¼NW¼SE¼, SW¼NW¼SE¼.

E. I. ROWLAND,
Regional Chief, Division of Lands.

[F. R. Doc. 53-2822; Filed, Apr. 2, 1953; 8:54 a. m.]

[FP 3]

MICHIGAN

NOTICE OF FILING OF PLAT OF SURVEY

MARCH 30, 1953.

Notice is given that the plat accepted January 19, 1950, of certain omitted lands in sec. 29, T. 42 N., R. 33 W., which represents a retracement and reestablishment of the original boundaries of section 29, designed to restore all corners in their true original locations, according to the best available evidence, and the survey of lands erroneously omitted from the original survey and not shown on the plat approved July 2, 1852, will be officially filed in the Bureau of Land Management, Department of the Interior, Washington 25, D. C., effective at 10:00 a. m., on the 35th day after the date of this notice as to the following described lands:

MICHIGAN MERIDIAN, MICHIGAN

T. 42 N., R. 33 W.,
Sec. 29, lots 8 and 9.

The area described aggregates 29.17 acres.

Available information indicates that the land is mainly a high ridge between East Maggie Lake and West Maggie Lake, with an elevation of about 40 feet above the water level, except for two small swampy areas at the south end; that the soil is a sandy loam with small gravel and stone, and covered with a mixed growth of popple, birch and maple ranging from about 4 to 8 inches in diameter, with a few Norway pine, spruce and hemlock.

No application for the described lands may be allowed under the small tract law or any other public land law unless the lands have already been classified as valuable or suitable for such application, or shall be so classified upon consideration of an application.

At the hour and date specified above the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this notice shall be subject only to (1) application under the homestead laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279-284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this notice shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this notice, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this notice, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Bureau of Land Management, Washington 25, D. C., shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Part 257 of Title 43 of the Code of Federal Regulations.

Inquiries concerning these lands shall be addressed to the Regional Administrator, Region VI, Department of the Interior, Washington 25, D. C.

For the Director.

R. J. MCCORMICK,
Acting Regional Administrator, Region VI.

[F. R. Doc. 53-2788; Filed, Apr. 2, 1953; 8:46 a. m.]

[58287]

MINNESOTA

NOTICE OF FILING OF PLAT OF SURVEY

MARCH 30, 1953.

Notice is given that the plat accepted March 3, 1952, of (1) limited dependent resurvey delineating the retracement and re-establishment of the boundaries of section 13 designed to restore all corners in their original locations according to the best available evidence, and

(2) an extension survey to include public lands which were erroneously omitted from the original survey and not shown on the plat approved December 18, 1860, will be officially filed in the Bureau of Land Management, Washington 25, D. C., effective at 10:00 a. m., on the 35th day after the date of the notice as to the following described lands:

5TH PRINCIPAL MERIDIAN, MINNESOTA

T. 130 N., R. 41 W.,
Sec. 13, lots 8 and 9.

The area described aggregates 38.64 acres.

Available information indicates that the land is approximately 90 percent upland and 10 percent swamp; that the upland is rolling and reaches approximately 70 feet above the water level of Pelican Lake and the crown of a hill, which has been several feet higher, has been cut away by gravel pit operation. The small swamp areas have mostly been filled in with road and railroad grades. The largest swamp area is in the east end of lot 8. The timber is a light growth of oak, elm, basswood, ash, boxelder, ironwood, cottonwood and willow, with very little undergrowth.

No applications for the described lands may be allowed under the homestead or small tract laws unless the lands have already been classified as valuable or suitable for such application or shall be so classified upon consideration of an application.

At the hour and date specified above the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this notice shall be subject only to (1) application under the homestead or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this notice shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this notice, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this notice, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of this claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Bureau of Land Management, Washington 25, D. C., shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Part 257 of that title.

Inquiries concerning these lands shall be addressed to Regional Administrator, Region VI, Bureau of Land Management, Department of the Interior, Washington 25, D. C.

For the Director.

R. J. MCCORMICK,
Acting Regional Administrator,
Region VI.

[F. R. Doc. 53-2790; Filed, Apr. 2, 1953; 8:47 a. m.]

[Wyoming No. 1]

WYOMING

STOCK DRIVEWAY WITHDRAWAL NO. 3

MARCH 27, 1953.

Pursuant to the authority delegated by the Director, Bureau of Land Management, in section 2.22 (a) (1) of Order No. 427, dated August 16, 1950 (15 F. R. 5639), it is ordered as follows:

Subject to valid rights and the provisions of existing withdrawals, the order of the Assistant Secretary of the Interior of October 20, 1917, establishing Stock Driveway Withdrawal No. 3, Wyoming No. 1, under section 10 of the act of December 29, 1916 (30 Stat. 865; 43 U. S. C. 300), is hereby revoked so far as it affects the following described lands:

SIXTH PRINCIPAL MERIDIAN

T. 46 N., R. 84 W.
Sec. 31: W½SE¼, SE¼SW¼.

The area described aggregates 120 acres.

The lands are primarily suitable for grazing purposes.

No applications for these lands may be allowed under the homestead, small tract, desert land, or any other non-mineral public land law, unless the lands have already been classified as valuable or suitable for such types of application, or shall be classified upon consideration for application.

All of the lands described above are included in a Federal exchange program whereby other private land will be acquired through exchange to provide continuity in the stock driveway and will not be subject to disposition under other public land laws.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic,

or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in Land and Survey Office, Cheyenne, Wyoming, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to Cheyenne Land and Survey Office, Cheyenne, Wyoming.

MAX CAPLAN,
Acting Regional Administrator.

[F. R. Doc. 53-2785; Filed, Apr. 2, 1953; 8:45 a. m.]

MONTANA GRAZING DISTRICT NO. 1
(MALTA)

FEDERAL RANGE CODE FOR GRAZING DISTRICTS; NOTICE OF RANGE IMPROVEMENT FEE IN DESIGNATED PORTIONS

MARCH 26, 1953.

Pursuant to the authority delegated to me by Order No. 2583 of August 16, 1950, of the Secretary of the Interior and in accordance with the provisions of § 161.8 (b), and note, of the Federal Range Code for Grazing Districts (43 CFR Part 161), and upon the recommendation of the District Advisory Board, notice is hereby given that for a period of three years commencing with the 1953 grazing season and terminating at the end of the 1955 grazing season, the range improvement fee per animal unit month to be charged in portions of Montana Grazing District No. 1, hereafter described, will be 15 cents per animal unit month for each month of the grazing period covered by the license or permit, i. e., at the rate of 15 cents per head per month for cattle and horses and 3 cents per head per month for sheep and goats, all animals being over six months of age.

The Federal range to which this range improvement fee will apply is described as follows:

Starting at the SW. corner, Sec. 18, T. 29 N., R. 34 E., M. P. M.; thence east along section line to NE. corner, Sec. 24, T. 29 N., R. 34 E.; thence south along range line to SE. corner Sec. 24, T. 29 N., R. 34 E.; thence east along section line to SE. corner Sec. 23, T. 29 N., R. 35 E.; thence north along section line to SE. corner of NE¼SE¼ of Sec. 14, T. 29 N., R. 35 E.; thence east to SE. corner of NE¼SE¼ of Sec. 13, T. 29 N., R. 35 E.; thence north along range line to SW. corner Sec. 7, T. 29 N., R. 36 E.; thence east along section line to NE. corner Sec. 14, T. 29 N., R. 36 E.; thence south to SE. corner Sec. 14, T. 29 N., R. 36 E.; thence east along section line to SE. corner Sec. 17, T. 29 N., R. 37 E.; thence north to NE. corner Sec. 17, T. 29 N., R. 37 E.; thence east along section line to NE. corner of NW¼ Sec. 15, T. 29 N., R. 37 E.; thence south to SE. corner of SW¼ Sec. 15, T. 29 N., R. 37 E.; thence east along section line to NE. corner Sec. 24, T. 29 N., R. 37 E.; thence south along range line to SW. corner Sec. 31, T. 29 N., R. 38 E.; thence east along township line to NE. corner Sec. 5, T. 28 N., R. 38 E.; thence south to SE. corner Sec. 5, T. 28 N., R. 38 E.; thence east along section line to SE. corner Sec. 1, T. 28 N., R. 38 E.; thence south along range line to NE. corner, Sec. 1, T. 27 N., R. 38 E.; thence east along township line to NE. corner Sec. 1, T. 27 N., R. 39 E.; thence south along range line to SE. corner Sec. 1, T. 26 N., R. 39 E.; thence east along township line to NE. corner Sec. 9, T. 26 N., R. 40 E.; thence south along section line to NE. corner Sec. 28, T. 26 N., R. 40 E.; thence east to NE. corner Sec. 26, T. 26 N., R. 40 E.; thence south along section line to SE. corner Sec. 35, T. 26 N., R. 40 E.

MARION CLAWSON,
Director.

[F. R. Doc. 53-2789; Filed, Apr. 2, 1953; 8:47 a. m.]

DEPARTMENT OF AGRICULTURE

Rural Electrification Administration

[Administrative Order 3928]

KANSAS

LOAN ANNOUNCEMENT

JANUARY 15, 1953.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Kansas 44M Grant	$325,000

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2849; Filed, Apr. 2, 1953; 8:57 a. m.]

[Administrative Order 3929]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 410, dated November 8, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by rescinding the allocation of $5,000 therein made for "Indiana O–R9009W1 Marshall";

(b) Administrative Order No. 318, dated January 31, 1939, by reducing the allocation of $2,000 therein made for "Indiana R9015W1 Fayette" by $642 so that the reduced allocation shall be $1,358;

(c) Administrative Order No. 463, dated May 22, 1940, by reducing the allocation of $7,000 therein made for "Indiana O–7053W3 Steuben" by $556.10 so that the reduced allocation shall be $6,443.90;

(d) Administrative Order No. 610, dated July 25, 1941, by rescinding the allocation of $10,000 therein made for "Indiana 2053W4 Steuben";

(e) Administrative Order No. 544, dated December 6, 1940, by reducing the allocation of $6,000 therein made for "Indiana 1055W2 Tippecanoe" by $2,580 so that the reduced allocation shall be $3,420; and

(f) Administrative Order No. 368, dated June 30, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $6,000 therein made for "Indiana 9–0072W1 Clark" by $4,196 so that the reduced allocation shall be $1,804.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2850; Filed, Apr. 2, 1953; 8:57 a. m.]

[Administrative Order 3930]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 675, dated February 19, 1942, by reducing the allocation of $15,000 therein made for "Missouri 2047S3 Cooper" by $8,716.16 so that the reduced allocation shall be $6,283.84;

(b) Administrative Order No. 394, dated September 27, 1939, by reducing the allocation of $5,000 therein made for "Missouri 0048W1 Newton" by $130 so that the reduced allocation shall be $4,870;

(c) Administrative Order No. 610, dated July 25, 1941, by reducing the allocation of $5,000 therein made for "Missouri 2048W2 Newton" by $4,028 so that the reduced allocation shall be $972;

(d) Administrative Order No. 1035, dated April 4, 1946, by rescinding the allocation of $4,500 therein made for "Missouri 63D Mt. Vernon";

(e) Administrative Order No. 368, dated June 30, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $3,000 therein made for "Texas 9–0011W1 Kaufman" by $72.04 so that the reduced allocation shall be $2,927.96; and

(f) Administrative Order No. 620, dated September 23, 1941, by rescinding the allocation of $5,000 therein made for "Texas 2011S2 Kaufman".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2851; Filed, Apr. 2, 1953; 8:57 a. m.]

[Administrative Order 3931]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 440, dated March 11, 1940, as amended by Administrative Order No. 457, dated May 10, 1940, by rescinding the allocation of $2,000 therein made for "Indiana 0–9080W1 Noble";

(b) Administrative Order No. 520, dated September 25, 1940, by rescinding the allocation of $5,000 therein made for "Indiana 1081W2 Sullivan";

(c) Administrative Order No. 538, dated November 5, 1940, by reducing the allocation of $20,000 therein made for "Indiana 1083W1 Dubois" by $19,700 so that the reduced allocation shall read $300;

(d) Administrative Order No. 816, dated April 3, 1944, by reducing the allocation of $20,000 therein made for "New York 4–3019S1 Otsego" by $6,807 so that the reduced allocation shall read $13,193;

(e) Administrative Order No. 832, dated May 26, 1944, by reducing the allocation of $30,000 therein made for "New York 4–1021S1 Steuben" by $24,868.41 so that the reduced allocation shall read $5,131.59; and

(f) Administrative Order No. 3021, dated November 15, 1950, by rescinding the loan of $100,000 therein made for "Virginia 11AD Rockingham".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2852; Filed, Apr. 2, 1953; 8:57 a. m.]

[Administrative Order 3932]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 394, dated September 27, 1939, by reducing the allocation of $3,500 therein made for "South Carolina 0024W1 Marion" by $86.08 so that the reduced allocation shall be $3,413.92;

(b) Administrative Order No. 506, dated August 15, 1940, by reducing the allocation of $5,000 therein made for "South Carolina 1024W2 Marion" by $208 so that the reduced allocation shall be $4,792;

(c) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $10,000 therein made for "South Carolina 2024S3 Marion";

(d) Administrative Order No. 1121, dated August 22, 1946, by rescinding the allocation of $25,000 therein made for "South Carolina 24M Marion";

(e) Administrative Order No. 538, dated November 5, 1940, by reducing the allocation of $5,000 therein made for "South Carolina 1034W1 Newberry" by $1,225 so that the reduced allocation shall be $3,775; and

(f) Administrative Order No. 538, dated November 5, 1940, by rescinding the allocation of $7,000 therein made for "South Carolina 1037W1 Lexington".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2853; Filed, Apr. 2, 1953; 8:57 a. m.]

[Administrative Order 3933]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 454, dated April 30, 1940, by reducing the allocation of $5,000 therein made for "Georgia 0–8037W2 Douglas" by $2,642.49 so that the reduced allocation shall be $2,357.51;

(b) Administrative Order No. 1307, dated July 24, 1947, by reducing the allocation of $50,000 therein made for "Georgia 42L Toombs" by $45,000 so that the reduced allocation shall be $5,000;

(c) Administrative Order No. 620, dated September 23, 1941, by reducing the allocation of $10,000 therein made for "Georgia 2045S5 Sumter" by $6,454.73 so that the reduced allocation shall be $3,545.27;

(d) Administrative Order No. 620, dated September 23, 1941, by reducing the allocation of $25,000 therein made for "Tennessee 2026S2 Loudon" by $14,827 so that the reduced allocation shall be $10,173;

(e) Administrative Order No. 544, dated December 6, 1940, by rescinding the allocation of $6,000 therein made for "Tennessee 1035W1 Marion"; and

(f) Administrative Order No. 487, dated July 17, 1940, by reducing the allocation of $5,000 therein made for "Tennessee 1037W1 Hawkins" by $4,585 so that the reduced allocation shall be $415.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2854; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3934]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 440, dated March 11, 1940, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Indiana O–R9088W1 Kosciusko" by $8 so that the reduced allocation shall be $4,992;

(b) Administrative Order No. 376, dated July 20, 1939, by reducing the allocation of $10,000 therein made for "Indiana 0089W1 Harrison" by $1,962.06 so that the reduced allocation shall be $8,037.94;

(c) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $15,000 therein made for "Indiana 2089S2 Harrison";

(d) Administrative Order No. 569, dated March 25, 1941, by rescinding the allocation of $3,000 therein made for "Michigan 1005W1 Lenawee";

(e) Administrative Order No. 635, dated November 5, 1941, by reducing the allocation of $15,000 therein made for "New Hampshire 2004S3 Merrimack" by $8,116 so that the reduced allocation shall be $6,884; and

(f) Administrative Order No. 676, dated February 20, 1942, by reducing the allocation of $2,000 therein made for "North Carolina 2021S5 Sampson" by $1,256.88 so that the reduced allocation shall be $743.12.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2855; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3935]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 520, dated September 25, 1940, by reducing the allocation of $12,000 therein made for "North Carolina 1050W1 Wayne" by $7,548 so that the reduced allocation shall be $4,452;

(b) Administrative Order No. 381, dated August 16, 1939, by rescinding the allocation of $1,000 therein made for "Ohio 0030W1 Marion";

(c) Administrative Order No. 322, dated February 20, 1939, by reducing the allocation of $5,000 therein made for "Ohio R9033W2 Auglaize" by $4,491.32 so that the reduced allocation shall be $508.68;

(d) Administrative Order No. 638, dated November 14, 1941, by rescinding the allocation of $10,000 therein made for "Ohio 2033S3 Auglaize";

(e) Administrative Order No. 506, dated August 15, 1940, by reducing the allocation of $5,000 therein made for "Ohio 1042W2 Darke" by $4,599.76 so that the reduced allocation shall be $400.24; and

(f) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $15,000 therein made for "Ohio 2042S3 Darke".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2856; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3936]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 307, dated November 3, 1938, by reducing the allocation of $7,000 therein made for "Georgia R9051W1 Newton" by $5,162.52 so that the reduced allocation shall be $1,837.48;

(b) Administrative Order No. 627, dated October 8, 1941, by rescinding the allocation of $10,000 therein made for "Georgia 2051S2 Newton";

(c) Administrative Order No. 182, dated January 19, 1938, by reducing the allocation of $25,000 therein made for "Georgia 8067W Bacon" by $0.12 so that the reduced allocation shall be $24,999.88;

(d) Administrative Order No. 343, dated May 11, 1939, by reducing the allocation of $25,000 therein made for "Georgia R9067W4 Bacon" by $10,700.13 so that the reduced allocation shall be $14,299.87;

(e) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $15,000 therein made for "Georgia 2067S5 Bacon"; and

(f) Administrative Order No. 1147, dated October 4, 1946, by rescinding the allocation of $35,000 therein made for "Georgia 67R Bacon".

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2857; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3937]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 556, dated January 28, 1941, by reducing the allocation of $5,000 therein made for "Colorado 1016W2 Jefferson" by $4,579 so that the reduced allocation shall be $421;

(b) Administrative Order No. 544, dated December 6, 1940, by reducing the allocation of $3,000 therein made for "Colorado 1018W1 Gunnison" by $973 so that the reduced allocation shall be $2,027;

(c) Administrative Order No. 394, dated September 27, 1939, by reducing the allocation of $5,000 therein made for "Colorado 0022W1 Boulder" by $2,542 so that the reduced allocation shall be $2,458;

(d) Administrative Order No. 506, dated August 15, 1940, by reducing the allocation of $3,000 therein made for "Colorado 1033W1 Dolores" by $893.95 so that the reduced allocation shall be $2,106.05;

(e) Administrative Order No. 538, dated November 5, 1940, by reducing the allocation of $4,000 therein made for "Colorado 1034W1 Eagle" by $2,655.03 so that the reduced allocation shall be $1,344.97; and

(f) Administrative Order No. 1031, dated March 29, 1946, by rescinding the allocation of $10,000 therein made for "Colorado 37D Douglas".

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2858; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3938]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 559, dated February 24, 1941, by reducing the allocation of $10,000 therein made for "Alabama 1018W3 Cullman" by $32.87 so that the reduced allocation shall be $9,967.13;

(b) Administrative Order No. 318, dated January 31, 1939, by reducing the allocation of $20,000 therein made for "Alabama R9025W1 Bullock" by $9,866.59 so that the reduced allocation shall be $10,133.41;

(c) Administrative Order No. 466, dated May 28, 1940, by reducing the allocation of $10,000 therein made for "Alabama 0026W2 Barbour" by $256.58 so that the reduced allocation shall be $9,743.42;

(d) Administrative Order No. 676, dated February 20, 1940, by rescinding the allocation of $10,000 therein made for "Alabama 2026S3 Barbour";

(e) Administrative Order No. 368, dated June 30, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Alabama 9-003W1 Autauga" by $1,362.27 so that the reduced allocation shall be $3,637.73; and

(f) Administrative Order No. 544, dated December 6, 1940, by rescinding the allocation of $5,000 therein made by "Alabama 1036W1 DeKalb".

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2859; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3939]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 258, dated June 6, 1938, by reducing the allocation of $10,000 therein made for "Arkansas 8011W1 Jackson" by $4,050.48 so that the reduced allocation shall be $5,949.52;

(b) Administrative Order No. 675, dated February 19, 1942, by reducing the allocation of $17,000 therein made for "Missouri 2040S3 Pettis" by $16,121.68 so that the reduced allocation shall be $878.32;

(c) Administrative Order No. 506, dated August 15, 1940, by reducing the allocation of $7,500 therein made for "Missouri 1042W2 Caldwell" by $3,515 so that the reduced allocation shall be $3,985;

(d) Administrative Order No. 620, dated September 23, 1941, by reducing the allocation of $25,000 therein made for "Texas 2040S3 Bowie" by $10,379.19 so that the reduced allocation shall be $14,620.81;

(e) Administrative Order No. 322, dated February 20, 1939, by reducing the allocation of $5,000 therein made for "Texas R9077W1 Johnson" by $1,321.47 so that the reduced allocation shall be $3,678.53; and

(f) Administrative Order No. 620, dated September 23, 1941, by reducing the allocation of $11,000 therein made for "Texas 2101S2 Parker" by $7,900.45 so that the reduced allocation shall be $3,099.55.

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2860; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3940]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 15, 1953.

I hereby amend:

(a) Administrative Order No. 326, dated March 11, 1939, by reducing the allocation of $5,000 therein made for "Indiana R9001W1 Greene" by $4,846 so that the reduced allocation shall be $154;

(b) Administrative Order No. 440, dated March 11, 1940, as amended by Administrative Order No. 457, dated May 10, 1940, by rescinding the allocation of $2,000 therein made for "Indiana O-R9008W1 Wabash";

(c) Administrative Order No. 281, dated August 18, 1938, by reducing the allocation of $12,000 therein made for "Indiana R9018W1 Rush" by $4,680.98 so that the reduced allocation shall be $7,319.02; and

(d) Administrative Order No. 415, dated December 1, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by rescinding the allocation of $10,000 therein made for "Indiana O-R9021W1 Bartholomew".

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2861; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3941]

TEXAS

LOAN ANNOUNCEMENT

JANUARY 16, 1953.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Texas 118 N Henderson	$110,000

[SEAL] CLAUDE R. WICKARD, *Administrator.*

[F. R. Doc. 53-2862; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3942]

NEW MEXICO

LOAN ANNOUNCEMENT

JANUARY 16, 1953.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting

through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
New Mexico 22 "F" McKinley	$230,000

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2863; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3943]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 335, dated April 12, 1939, by reducing the allocation of $10,000 therein made for "Kansas R9014W1 Sumner-Cowley" by $2,013.98 so that the reduced allocation shall be $7,986.02; and

(b) Administrative Order No. 675, dated February 19, 1942, by rescinding the allocation of $10,000 therein made for "Wyoming 2006S1 Goshen".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2864; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3944]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 341, dated May 2, 1939, by reducing the allocation of $2,500 therein made for "Colorado R9017W1 Prowers" by $1,621.52 so that the reduced allocation shall be $878.48;

(b) Administrative Order No. 627, dated October 8, 1941, by reducing the allocation of $25,000 therein made for "Colorado 2029S3 Phillips" by $20,461.15 so that the reduced allocation shall be $4,538.85;

(c) Administrative Order No. 610, dated July 25, 1941, by reducing the allocation of $5,000 therein made for "Colorado 2031W2 Larimer" by $86 so that the reduced allocation shall be $4,914;

(d) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $5,000 therein made for "Colorado 2031S3 Larimer";

(e) Administrative Order No. 487, dated July 17, 1940, by reducing the allocation of $6,000 therein made for "Colorado 1032W1 La Plata" by $1,573 so that the reduced allocation shall be $4,427; and

(f) Administrative Order No. 358, dated June 19, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Kansas 9-0024-W1 Clay" by $208 so that the reduced allocation shall be $4,792.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2865; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3945]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 232, dated April 1, 1938, as amended by Administrative Order No. 380, dated August 7, 1939, by reducing the allocation of $5,000 therein made for "Delaware 8002W1 Sussex" by $2,119.11 so that the reduced allocation shall be $2,880.89;

(b) Administrative Order No. 131, dated August 31, 1937, by reducing the allocation of $10,000 therein made for "Maine 8002W Penobscot" by $5,986.52 so that the reduced allocation shall be $4,013.48;

(c) Administrative Order No. 520, dated September 25, 1940, by reducing the allocation of $10,000 therein made for "Michigan 1033W1 Charlevoix" by $9,059 so that the reduced allocation shall be $941;

(d) Administrative Order No. 182, dated January 19, 1938, by reducing the allocation of $10,000 therein made for "Michigan 8040W Allegan" by $333.77 so that the reduced allocation shall be $9,666.23;

(e) Administrative Order No. 610, dated January 25, 1941, by rescinding the allocation of $15,000 therein made for "Michigan 2040W2 Allegan"; and

(f) Administrative Order No. 313, dated December 12, 1938, by reducing the allocation of $15,000 therein made for "Michigan R9043W1 Chippewa" by $12,563.57 so that the reduced allocation shall be $2,436.43.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2866; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3946]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 310, dated December 3, 1938, by reducing the allocation of $5,000 therein made for "Texas R9065W1 Rusk" by $217.11 so that the reduced allocation shall be $4,782.89;

(b) Administrative Order No. 620, dated September 23, 1941, by rescinding the allocation of $15,000 therein made for "Texas 2065S2 Rusk";

(c) Administrative Order No. 338, dated April 18, 1939, by reducing the allocation of $5,000 therein made for "Texas R9075W1 Wharton" by $3,494 so that the reduced allocation shall be $1,506;

(d) Administrative Order No. 358, dated June 19, 1939, by reducing the allocation of $5,000 therein made for "Texas 9-0093W1 De Witt" by $2,774 so that the reduced allocation shall be $2,226;

(e) Administrative Order No. 544, dated December 6, 1940, by reducing the allocation of $2,500 therein made for "Texas 1099W1 Jones" by $2,344 so that the reduced allocation shall be $156; and

(f) Administrative Order No. 632, dated March 2, 1942, by rescinding the allocation of $14,000 therein made for "Texas 2118S1 Henderson".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2867; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3947]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 318, dated January 31, 1939, by reducing the allocation of $3,500 therein made for "Arkansas 9009W1 Craighead" by $2 so that the reduced allocation shall be $3,498;

(b) Administrative Order No. 449, dated April 22, 1940, by reducing the allocation of $3,500 therein made for "Arkansas 0009W2 Craighead" by $25.40 so that the reduced allocation shall be $3,474.60;

(c) Administrative Order No. 610, dated July 25, 1941, by rescinding the allocation of $55,000 therein made for "Arkansas 2009W3 Craighead";

(d) Administrative Order No. 376, dated July 20, 1939, by reducing the allocation of $5,000 therein made for "Arkansas 0022W1 Clay" by $2,823.40 so that the reduced allocation shall be $2,176.60;

(e) Administrative Order No. 181, dated January 10, 1938, by reducing the allocation of $15,000 therein made for "Louisiana 8009W1 Lafayette" by $8,420.67 so that the reduced allocation shall be $6,579.33; and

(f) Administrative Order No. 379, dated August 1, 1939, by reducing the allocation of $12,500 therein made for "Louisiana 0012W1 Franklin" by $2,810.22 so that the reduced allocation shall be $9,689.78.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2868; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3948]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 386, dated August 23, 1939, by reducing the allocation of $2,000 therein made for "Louisiana 0017W1 Claiborne" by $1,603 so that the reduced allocation shall be $397;

(b) Administrative Order No. 556, dated January 28, 1941, by reducing the allocation of $5,000 therein made for "Missouri 1012W3 Pemiscot" by $2,010.57 so that the reduced allocation shall be $2,989.43;

(c) Administrative Order No. 147, dated October 2, 1937, as amended by Administrative Order No. 230, dated March 31, 1938, by reducing the allocation of $5,000 therein made for "Mis-

souri 8026W1 Ralls" by $1,259.27 so that the reduced allocation shall be $3,740.73;

(d) Administrative Order No. 329, dated March 22, 1939, by reducing the allocation of $20,000 therein made for "Texas R9048W2 Hidalgo" by $5,809.84 so that the reduced allocation shall be $14,190.16;

(e) Administrative Order No. 329, dated March 22, 1939, by rescinding the allocation of $3,000 therein made for "Texas R9049W1 Denton"; and

(f) Administrative Order No. 326, dated March 11, 1939, by reducing the allocation of $6,000 therein made for "Texas R9067W1 Rains-Rockwall" by $4,948.19 so that the reduced allocation shall be $1,051.81.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2869; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3949]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 318, dated January 31, 1939, by reducing the allocation of $10,000 therein made for "Georgia R9008W1 Wilkes" by $45.72 so that the reduced allocation shall be $9,954.28;

(b) Administrative Order No. 569, dated March 25, 1941, by rescinding the allocation of $3,000 therein made for "Georgia 1008W2 Wilkes";

(c) Administrative Order No. 610, dated July 25, 1941, by rescinding the allocation of $20,000 therein made for "Georgia 2008W3 Wilkes";

(d) Administrative Order No. 358, dated June 19, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Georgia 9-0058W2 Butts" by $2,220.90 so that the reduced allocation shall be $2,779.10;

(e) Administrative Order No. 1017, dated March 12, 1946, by reducing the allocation of $50,000 therein made for "Georgia 58H Butts" by $46,225.38 so that the reduced allocation shall be $3,774.62; and

(f) Administrative Order No. 343, dated May 11, 1939, by reducing the allocation of $8,000 therein made for "Georgia R9078W1 Habersham" by $5,386.39 so that the reduced allocation shall be $2,613.61.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2870; Filed, Apr. 2, 1953; 8:58 a. m.]

[Administrative Order 3950]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 176, dated December 20, 1937, by reducing the allocation of $20,000 therein made for "Georgia 8069W1 Washington" by $2,652.02 so that the reduced allocation shall be $17,347.98;

(b) Administrative Order No. 610, dated July 25, 1941, by rescinding the allocation of $25,000 therein made for "Georgia 2069W2 Washington";

(c) Administrative Order No. 556, dated January 28, 1941, by reducing the allocation of $7,000 therein made for "Florida 1030W1 Walton" by $1,292 so that the reduced allocation shall be $5,708;

(d) Administrative Order No. 1126, dated August 28, 1946, by rescinding the allocation of $15,000 therein made for "Florida 30E Walton";

(e) Administrative Order No. 487, dated July 17, 1940, by reducing the allocation of $8,000 therein made for "South Carolina 1030W1 Colleton" by $7,024.05 so that the reduced allocation shall be $975.95;

(f) Administrative Order No. 635, dated November 5, 1941, by reducing the allocation of $15,000 therein made for "South Carolina 2031S2 Horry" by $9,200 so that the reduced allocation shall be $5,800; and

(g) Administrative Order No. 2670, dated May 16, 1950, by rescinding the allocation of $25,000 therein made for "South Carolina 31R Horry".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2871; Filed, Apr. 2, 1953; 8:59 a. m.]

[Administrative Order 3951]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administration Order No. 2291, dated September 1, 1949, by rescinding the loan of $25,000 therein made for "Kansas 49F Cheyenne".

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2872; Filed, Apr. 2, 1953; 8:59 a. m.]

[Administrative Order 3952]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 329, dated March 22, 1939, by reducing the allocation of $5,000 therein made for "Missouri R9024W1 Callaway" by $4,600 so that the reduced allocation shall be $400;

(b) Administrative Order No. 318, dated January 31, 1939, by reducing the allocation of $12,000 therein made for "Missouri 9031W1 Mississippi" by $5,375.50 so that the reduced allocation shall be $6,624.50;

(c) Administrative Order No. 358, dated June 19, 1939, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Missouri 9-0044W1 Grundy" by $629.69 so that the reduced allocation shall be $4,370.31;

(d) Administrative Order No. 871, dated December 16, 1944, by reducing the allocation of $6,000 therein made for "Texas 5134S2 Douglassville" by $1,061.70 so that the reduced allocation shall be $4,938.30; and

(e) Administrative Order No. 1495, dated April 23, 1948, by reducing the allocation of $3,000 therein made for "Texas 134C Douglassville" by $2,155.58 so that the reduced allocation shall be $844.42.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2873; Filed, Apr. 2, 1953; 8:59 a. m.]

[Administrative Order 3953]

ALLOCATION OF FUNDS FOR LOANS

JANUARY 16, 1953.

I hereby amend:

(a) Administrative Order No. 476, dated July 1, 1940, by reducing the allocation of $10,000 therein made for "Georgia 1065W2 Irwin" by $3,535.46 so that the reduced allocation shall be $6,464.54;

(b) Administrative Order No. 676, dated February 20, 1942, by rescinding the allocation of $13,000 therein made for "Georgia 2065S3 Irwin";

(c) Administrative Order No. 627, dated October 8, 1941, by reducing the allocation of $10,000 therein made for "Georgia 2084S2 Cobb" by $9,535 so that the reduced allocation shall be $465;

(d) Administrative Order No. 520, dated September 25, 1940, by reducing the allocation of $12,000 therein made for "Georgia 1096W1 Pickens" by $11,752 so that the reduced allocation shall be $248;

(e) Administrative Order No. 428, dated January 13, 1940, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Mississippi O-9023W1 Copiah" by $4,386 so that the reduced allocation shall be $614; and

(f) Administrative Order No. 428, dated January 13, 1940, as amended by Administrative Order No. 457, dated May 10, 1940, by reducing the allocation of $5,000 therein made for "Mississippi O-9038W1 Warren" by $1,572.39 so that the reduced allocation shall be $3,427.61.

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53-2874; Filed, Apr. 2, 1953; 8:59 a. m.]

[Administrative Order T-254]

TEXAS

LOAN ANNOUNCEMENT

JANUARY 15, 1953.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Taylor Telephone Cooperative, Inc., Texas 544–B	$394,000

[SEAL] CLAUDE R. WICKARD,
Administrator.

[F. R. Doc. 53–2875; Filed, Apr. 2, 1953; 8:59 a. m.]

DEPARTMENT OF COMMERCE

Foreign-Trade Zones Board

[Order No. 32]

STATE BOARD OF HARBOR COMMISSIONERS, SAN FRANCISCO, CALIF.

APPLICATION TO ESTABLISH TEMPORARY SUB-ZONE OF FOREIGN-TRADE ZONE NO. 3

In the matter of the application of the State Board of Harbor Commissioners for San Francisco Harbor, California, to establish a temporary sub-zone of foreign-trade Zone No. 3 for the specialized purpose of exhibition of foreign merchandise.

Pursuant to the authority granted in the Foreign-Trade Zones Act of June 18, 1934, as amended (48 Stat. 998–1003; 19 U. S. C. 81a–81u), and under the provisions of § 400.304 of the general regulations governing Foreign-Trade Zones in the United States, the Foreign-Trade Zones Board has adopted the following order which is promulgated for the information and guidance of all concerned:

Whereas, on November 12, 1952, the Board of State Harbor Commissioners for San Francisco, California, as grantee of Foreign-Trade Zone No. 3, made application for permission to establish a sub-zone for the specialized purpose of exhibition of foreign merchandise in the Gold Ball Room of the Palace Hotel in San Francisco, California, during the period of June 19 through June 30, 1953, in conjunction with the International Congress of Junior Chambers of Commerce and the San Francisco International World Trade Fair; and

Whereas, the Foreign-Trade Zones Board finds that the existing zone will not serve adequately the convenience of commerce with respect to the purpose of the proposed sub-zone;

Now, therefore, the Foreign-Trade Zones Board, after full consideration and a finding that the proposal is in the public interest, hereby orders:

1. That a sub-zone of Foreign-Trade Zone No. 3 be and it is hereby established to conform with Exhibit No. 10, filed with the application, in the Gold Ball Room of the Palace Hotel in San Francisco, California, during the period of June 19 through June 30, 1953: *Provided*, That the grantee segregates such area in a manner that will comply with the requirements of the Collector of Customs at San Francisco.

It is found that compliance with the notice, public rule making procedure, and effective date requirements of the Administrative Procedure Act (5 U. S. C. 1003) is unnecessary in connection with the issuance of this order, because its application is restricted to one foreign-trade zone, and is of a nature that it imposes no burden on the parties of interest. The effective date of this order is, therefore, upon publication in the FEDERAL REGISTER.

Signed at Washington, D. C., this 24th day of March 1953.

FOREIGN-TRADE ZONES BOARD,
[SEAL] SINCLAIR WEEKS,
Secretary of Commerce,
Chairman and Executive Officer.

Attest:

THOS. E. LYONS,
Executive Secretary.

[F. R. Doc. 53–2813; Filed, Apr. 2, 1953; 8:52 a. m.]

Office of International Trade

[Case 140]

GEORGE BLUDS AND CAYMEX CORP.

SUPPLEMENTAL ORDER DENYING LICENSE PRIVILEGES

In the matter of George Bluds, individually and as President, Caymex Corporation, 50 Broad Street, New York, New York; Caymex Corporation, 50 Broad Street, New York, New York; Respondents; Case No. 140.

Compliance proceedings instituted against George Bluds, individually and as president of Caymex Corporation, and Caymex Corporation ("Respondents"), by the Office of International Trade, United States Department of Commerce, on August 6, 1952, culminated in an order issued on November 3, 1952, (17 F. R. 10149) under the terms of which Respondents were declared ineligible and denied the privileges of participating, directly or indirectly, in any exportation to any foreign destination of any commodity on the Office of International Trade Positive List of Commodities for a period of six (6) months. The order holds in abeyance an additional six (6) months' suspension if Respondents do not commit any further export control violations during the entire period of twelve months.

Said order was issued after Respondents admitted charges that in December 1951 they had, by false representations and statements to Office of International Trade officials, obtained a validated export license authorizing the shipment of a large quantity of copper sulphate to France, and that in connection with such shipment they had omitted to place upon the shipping documents a required statement to the effect that diversion of the goods contrary to United States law was prohibited. Another factor taken into consideration by Office of International Trade officials in determining the period of suspension involved certain violations of the export control regulations by respondents in May 1950, although such violations were not made the subject of formal compliance proceedings and respondents merely were reprimanded by a warning letter.

Paragraph (3) of said order provides, inter alia, that in the event Respondents shall at any time during the period covered by the order knowingly violate any of the provisions thereof, or any of the Office of International Trade regulations, the Office of International Trade "may summarily, at such time as it determines such violation occurred, issue an order which denies, to the respondent or respondents who have violated, all export privileges for the full six (6) months which have been suspended, without limiting thereby the Office of International Trade from instituting any other and further action it may deem appropriate based on such violation."

It has been established that since the entry of said order against Respondents, as aforesaid, Respondents have been abroad, and, in France and other foreign countries, have represented themselves to various customers as agents for an American concern and have offered for sale to these customers large quantities of wood pulp, part located in Canada and part in the United States, owned by such concern, for delivery in the countries of such customers. It has also been established that Respondents had, in fact, entered into an arrangement with the American company for the sale abroad of said wood pulp on a commission basis, although this arrangement has now been cancelled by the American concern upon being apprised of the Office of International Trade suspension order against Respondents. It is further established that said wood pulp is a commodity appearing on the Office of International Trade Positive List of Commodities and that its exportation from the United States and from Canada to any foreign destination is subject to United States export controls, to the knowledge of Respondents.

It is accordingly determined that by the foregoing acts, Respondents have knowingly violated the terms and provisions of said order in that they have participated in a transaction looking toward the exportation to a foreign destination of a commodity on the Positive List of Commodities; and that they have thereby forfeited the privilege of having restored to them export privileges held in suspense for the latter six months of the order pursuant to paragraph (3) thereof.

It is, therefore, ordered as follows:

The order of November 3, 1952, is hereby reaffirmed and continued in effect in all respects, except that paragraph 3 thereof is amended by striking therefrom the provision, "that upon the expiration of six (6) months from the date of this order, the order shall be suspended for the balance of the six (6) months remaining and the export privileges denied herein shall be restored to said respondents."

Dated: March 31, 1953.

JOHN C. BORTON,
Assistant Director
for Export Supply.

[F. R. Doc. 53–2818; Filed, Apr. 2, 1953; 8:53 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 2901 et al.]

PORTLAND-SEATTLE SERVICE CASE

NOTICE OF POSTPONEMENT OF ORAL ARGUMENT

Notice is hereby given, pursuant to the provisions of the Civil Aeronautics Act of 1938, as amended, that oral argument in the above-entitled proceeding assigned to be held on April 7, 1953 is postponed to April 28, 1953 at 10:00 a. m., e. s. t., in Room 5042, Commerce Building, Constitution Avenue, between Fourteenth and Fifteenth Streets NW., Washington, D. C., before the Board.

Dated at Washington, D. C., March 31, 1953.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 53-2845; Filed, Apr. 2, 1953; 8:57 a. m.]

[Docket No. SA-274]

ACCIDENT OCCURRING NEAR ALVARADO, CALIF.

NOTICE OF HEARING

In the matter of investigation of accident involving aircraft of United States Registry N 88942, which occurred one mile north of Alvarado, March 20, 1953.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly section 702 of said act, in the above-entitled proceeding that hearing is hereby assigned to be held on Thursday, April 16, 1953, at 9:00 a. m., P. s. t., in the Leamington Hotel, Ninteenth and Franklin Streets, Oakland, California.

Dated at Washington, D. C., March 27, 1953.

[SEAL] VAN R. O'BRIEN,
Presiding Officer.

[F. R. Doc. 53-2846; Filed, Apr. 2, 1953; 8:57 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-1847]

AMERICAN GAS AND ELECTRIC CO.

ORDER EXTENDING TIME FOR DISPOSITION OF WATER PROPERTIES

MARCH 30, 1953.

American Gas and Electric Company ("American Gas"), having acquired all of the outstanding securities of Citizens Heat, Light and Power Company ("Citizens"), in accordance with an order of this Commission dated August 19, 1948, said order providing that American Gas should dispose of the water properties and business of Citizens within one year from the date of acquisition, or such later date as the Commission should determine purusant to a request for an extension of time for good cause shown; and

The Commission having previously extended the time for disposition of such properties to March 15, 1953, and American Gas having filed a further application setting forth that continuing efforts are being made for the disposition of such properties and business and that a program of rehabilitation of the properties has been commenced so as to facilitate their disposition, and requesting that the time for such disposition be extended for a period of six months from March 15, 1953; and

It appearing to the Commission in the light of the circumstances set forth that it is appropriate to grant said application for an extension of time:

It is ordered, That the time for disposition of the water properties and businesses of Citizens by American Gas be, and the same hereby is, extended to September 15, 1953.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 53-2799; Filed, Apr. 2, 1953; 8:50 a. m.]

[File No. 70-2544]

MIDDLE SOUTH UTILITIES, INC., AND GENTILLY DEVELOPMENT CO., INC.

NOTICE OF FILING OF AMENDMENT REGARDING DISSOLUTION OF NON-UTILITY SUBSIDIARY

MARCH 30, 1953.

Notice is hereby given that Middle South Utilities, Inc. ("Middle South"), a registered holding company, and its wholly owned non-utility subsidiary, Gentilly Development Company, Inc. ("Gentilly"), have filed a joint amendment to an application previously filed by Gentilly under the Public Utility Holding Company Act of 1935. The companies have designated sections 9, 11 (b) (1), 11 (b) (2), 12 (c) and 12 (f) of said act, and Rules U-42 and U-46 promulgated thereunder as applicable to the proposed transactions, which are summarized as follows:

On January 12, 1951, pursuant to authorization granted by this Commission by its order dated January 3, 1951 (File No. 70-2544), Gentilly sold its principal asset consisting of a tract of undeveloped real estate in the City of New Orleans, Louisiana, to Gentilly Homes, Inc., and W. H. Crawford and R. A. Toups for an aggregate purchase price of $900,000. In satisfaction of the purchase price, Gentilly received $90,000 in cash, and two mortgage notes in the aggregate amount of $810,000, both of which had maturity dates of January 12, 1953.

The mortgage securing the above described notes gave the makers the right to have released from the respective mortgages parcels of property upon payment of specified amounts per unit of property to be released. As payments were made for such releases of property, Gentilly has used such cash to pay liquidating dividends to Middle South as authorized by this Commission's order of March 8, 1951 (File No. 70-2566). All of such dividend payments were made by Gentilly as a return of capital and were charged to capital surplus which was created as a result of the reduction of capital stock authorized by this Commission in 1948. Middle South has credited the dividends received from Gentilly to the carrying value of its investment in Gentilly.

The application states that the notes held by Gentilly have now been paid in full and that the Company's assets consist entirely of cash. At February 28, 1953, Gentilly had a cash balance of $203,161 and its liabilities amounted to $4,433. Middle South and Gentilly request approval by the Commission of a plan providing for the complete liquidation of Gentilly. Under this plan Gentilly shall transfer to Middle South all of Gentilly's assets and Middle South will surrender the stock of Gentilly for cancellation and assume all of Gentilly's liabilities.

Middle South and Gentilly request that the order of the Commission recite that the proposed transactions are necessary or appropriate to the integration or simplification of the holding company system of which Gentilly and Middle South are members, and necessary or appropriate to effectuate the provisions of sub-section (b) of section 11 of the act, all in accordance with the meaning and requirements of the Internal Revenue Code, as amended, including section 1808 (f) and Supplement R thereof.

Notice is further given that any interested person may, not later than April 9, 1953, at 5:30 p. m., e. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law, if any, raised by the said amended application which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after April 9, 1953, said amended application, as filed, or as further amended, may be granted as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof. All interested persons are referred to said amended application which is on file at the offices of this Commission for a statement of the transactions therein proposed.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 53-2794; Filed, Apr. 2, 1953; 8:48 a. m.]

[File No. 70-3009]

UTAH POWER AND LIGHT CO.

ORDER REGARDING INCREASE IN AUTHORIZED COMMON STOCK

MARCH 30, 1953.

Utah Power and Light Company ("Utah"), a registered holding company, having filed a declaration and an amendment thereto pursuant to sections 6 (a), 7 and 12 (e) of the Public Utility Holding Company Act of 1935 ("act") and Rule U-62 of the rules and regulations pro-

mulgated thereunder with respect to the following proposed transactions:

Utah proposes to amend its certificate of organization and by-laws so as to increase its authorized capital stock from 2,000,000 shares of no par value common stock (of which 1,842,500 shares are presently outstanding) to 2,500,000 shares of no par value common stock. The amendment will require the approval of the holders of a majority of the shares of outstanding common stock of Utah. The company intends to submit the proposed amendment to its stockholders at the annual meeting to be held May 18, 1953, and will solicit proxies with respect thereto.

Utah states that the financing of its construction program, presently estimated to require the expenditure of approximately $42,000,000 during the years 1953–1955, will require the issuance and sale of additional securities including common stock and that it proposes to increase the authorized common stock so that additional shares may be issued and sold at a later date upon the approval of regulatory authorities.

Said declaration having been filed on February 27, 1953, and an amendment thereto having been filed on March 23, 1953, notice of said filing having been given in the form and manner prescribed by Rule U-23 promulgated pursuant to said act, the Commission not having received a request for hearing within the time specified in said notice, or otherwise, and the Commission not having ordered a hearing thereon; and

The Commission finding with respect to said declaration, as amended, that the applicable provisions of the act and rules promulgated thereunder are satisfied and that no adverse findings are necessary and deeming it appropriate in the public interest and in the interest of investors and consumers that said declaration, as amended, be permitted to become effective forthwith:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act that said declaration, as amended, be, and hereby is, permitted to become effective forthwith, subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2801; Filed, Apr. 2, 1953; 8:50 a. m.]

[File No. 70-3011]

SOUTHERN CO.

ORDER PERMITTING SUBMISSION OF COMMON STOCK RIGHTS OFFERING, ON A 1 FOR 17 BASIS, TO COMPETITIVE BIDDING FOR UNDERWRITING

MARCH 30, 1953.

The Southern Company ("Southern"), a registered holding company, has filed an application-declaration and amendments thereto pursuant to sections 6 and 7 of the act and Rule U-50, promulgated thereunder, with respect to certain proposed transactions which are summarized as follows:

Southern proposes to issue and sell 1,004,869 additional shares of its common stock of $5 par value. The shares of common stock are to be offered for subscription during a period of approximately three weeks to the holders of the presently outstanding common stock of the company in the ratio of 1 share of common stock for each 17 shares of common stock now held. Stockholders will also have the privilege of subscribing for additional shares, subject to allotment. The subscription price per share is to be determined by the company. The rights to subscribe are to be evidenced by transferable subscription warrants. No fractional shares are to be issued. The warrants will provide that persons subscribing for stock may direct the subscription agent to purchase additional rights required to complete a full share subscription or to sell rights in excess of a full share subscription. In each case, the purchase or sale may not exceed 16 rights for any single stockholder.

Southern proposes, if considered necessary or desirable, to stabilize the price of the common stock of the company for the purpose of facilitating the offering and distribution of the additional shares of common stock. In connection therewith the company may purchase shares of its common stock, but not in excess of 100,487 shares, on the New York Stock Exchange or otherwise, during the period commencing with the first business day prior to the date when the subscription price per share is to be determined and continuing until the acceptance of a bid by the prospective underwriters. Such purchases are to be made through brokers with the payment of regular Stock Exchange commissions.

The above described offering is to be underwritten and the company proposes to select the underwriters through competitive bidding pursuant to Rule U-50. Under the purchase contract, the underwriters will be required to purchase at the subscription price any unsubscribed stock and the stock, if any, acquired by the company through stabilizing operations. At least 42 hours prior to the time for the submission and opening of bids, Southern will advise the prospective bidders of the subscription price per share. The bidders will be required to specify the amount of compensation to be paid them by the company for their commitments. Under the purchase contract the purchasers must agree that, in the event any shares purchased by them from the company shall be sold by them prior to 30 days following the expiration of the subscription period for a price in excess of the subscription price plus 65¢ per share, the purchasers shall pay to the company 50 percent of such excess.

Southern which owns all the common stock of its operating subsidiaries, proposes to use the proceeds from the sale of additional shares of its common stock to purchase additional common stock of its subsidiary operating companies, or to repay bank loans incurred for such purpose, or to reimburse its treasury for funds expended since December 31, 1952, for such purpose, in order to assist such operating companies in financing their present construction programs. Separate applications and declarations have recently been or will be filed with the Commission with respect to investments made or proposed to be made by Southern in the common stock of its subsidiary operating companies.

Southern has requested that the Commission's order herein become effective upon issuance.

Notice of said filing having been duly given in the form and manner prescribed by Rule U-23 promulgated pursuant to the act, and the Commission not having received a request for hearing with respect to said application-declaration, as amended, within the period specified in said notice, or otherwise, and not having ordered a hearing thereon; and

The Commission finding with respect to said application-declaration, as amended, that the requirements of the applicable provisions of the act and rules thereunder are satisfied, and deeming it appropriate in the public interest and in the interest of investors and consumers that the said application-declaration, as amended, be granted and permitted to become effective forthwith:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act, that the said application-declaration, as amended, be, and hereby is, granted and permitted to become effective forthwith, subject to the terms and conditions prescribed in Rule U-24 and to the further condition that the proposed issuance and sale of the 1,004,869 shares of common stock by Southern shall not be consummated until the subscription price per share and the results of competitive bidding, pursuant to Rule U-50, have been made a matter of record in this proceeding and a further order shall have been entered, with respect thereto, which order shall contain such further terms and conditions as may then be deemed appropriate, for which purpose jurisdiction be, and the same hereby is, reserved.

It is further ordered, That jurisdiction be, and the same hereby is, reserved over all fees and expenses to be incurred in connection with the proposed transactions.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2800; Filed, Apr. 2, 1953; 8:50 a. m.]

[File No. 70-3028]

COLUMBIA GAS SYSTEM, INC., AND CUMBERLAND AND ALLEGHENY GAS CO.

NOTICE REGARDING ISSUANCE AND SALE OF COMMON STOCK BY SUBSIDIARY AND ACQUISITION THEREOF BY PARENT COMPANY

MARCH 30, 1953.

Notice is hereby given that a joint application has been filed with this Commission by the Columbia Gas System, Inc. ("Columbia"), a registered holding company, and Cumberland and Allegheny Gas Company ("Cumberland"), a wholly owned subsidiary company of Co-

lumbia, pursuant to the Public Utility Holding Company Act of 1935 ("act"). Sections 6 (b), 9 and 10 of the act have been designated as being applicable to the proposed transactions.

All interested persons are referred to said joint application which is on file in the offices of the Commission for a statement of the transactions therein proposed, which are summarized as follows:

Cumberland proposes to issue and sell and Columbia proposes to acquire, at par, 14,000 shares of common stock of Cumberland, par value $25 per share ($350,000). It is represented that the proceeds to be derived from Columbia would be used by Cumberland to finance in part its 1953 construction program involving expenditures presently estimated at approximately $2,694,500.

The issuance and sale of the common stock by Cumberland is stated to be subject to the jurisdiction of the Public Service Commission of West Virginia.

Notice is further given that any interested person may, not later than April 14, 1953, at 5:30 p. m., e. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues of fact or law, if any, raised by the said joint application which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after April 14, 1953, said joint application, as filed or as amended, may be granted as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2793; Filed, Apr. 2, 1953; 8:48 a. m.]

[File No. 70-3029]

COLUMBIA GAS SYSTEM, INC., AND NATURAL GAS CO. OF WEST VIRGINIA

NOTICE REGARDING ISSUANCE AND SALE OF COMMON STOCK BY SUBSIDIARY AND ACQUISITION THEREOF BY PARENT COMPANY

MARCH 30, 1953.

Notice is hereby given that a joint application-declaration has been filed with this Commission by the Columbia Gas System, Inc. ("Columbia"), a registered holding company, and Natural Gas Company of West Virginia ("Natural Gas"), a wholly owned subsidiary company of Columbia, pursuant to the Public Utility Holding Company Act of 1935 ("act"). Sections 6 (b) 9 and 10 of the act have been designated as being applicable to the proposed transactions, and it appears that section 7 may also be applicable thereto.

All interested persons are referred to said joint application-declaration which is on file in the offices of the Commission for a statement of the transactions therein proposed, which are summarized as follows:

Natural Gas proposes to issue and sell and Columbia proposes to acquire, at par, 6,000 shares of common stock of Natural Gas, par value $100 per share ($600,000). It is represented that the proceeds to be derived from Columbia would be used by Natural Gas to finance in part its 1953 construction program involving expenditures presently estimated at approximately $1,263,250.

The issuance and sale of the common stock by Natural Gas is stated to be subject to the jurisdiction of the Public Utilities Commission of the State of Ohio.

Notice is further given that any interested person may, not later than April 14, 1953, at 5:30 p. m., e. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues of fact or law, if any, raised by the said joint application-declaration which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after April 14, 1953, said joint application-declaration, as filed or as amended, may be granted and permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2792; Filed, Apr. 2, 1953; 8:47 a. m.]

ROBERT HILL

ORDER FOR PROCEEDINGS AND NOTICE OF HEARING

In the matter of Robert Hill, 121 Crystal Arcade, Manila, Philippine Islands.

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 27th day of March 1953.

I. The Commission's public official files disclosed that Robert Hill, a sole proprietor, hereinafter referred to as registrant, is registered as a broker-dealer pursuant to section 15 (b) of the Securities Exchange Act of 1934.

II. The Records Officer of the Commission has filed with the Commission a statement, a copy of which is attached hereto and made a part hereof,[1] stating that registrant did not file with the Commission reports on his financial condition during the calendar years 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951 and 1952, as required by section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted thereunder.

[1] Filed as part of the original document.

III. The information reported to the Commission by its Records Officer as set forth in Paragraph II hereof tends, if true, to show that registrant violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section.

IV. The Commission, having considered the aforesaid information, deems it necessary and appropriate in the public interest and for the protection of investors that proceedings be instituted to determine:

(a) Whether the statement referred to in Paragraph II hereof is true;

(b) Whether registrant has wilfully violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section;

(c) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, it is in the public interest to revoke registration of registrant; and

(d) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, pending final determination, it is necessary or appropriate in the public interest or for the protection of investors to suspend the registration of registrant.

V. *It is ordered,* That registrant be given an opportunity for hearing as set forth in Paragraph IV hereof on the 18th day of May 1953, at the main office of the Securities and Exchange Commission, located at 425 Second Street NW., Washington 25, D. C., before a Hearing Examiner to be designated by the Commission. On such date the Hearing Room Clerk in Room 193, North Building, will advise the parties and the Hearing Examiner as to the room in which such hearing will be held. The Commission will consider any motion with respect to a change of place of said hearing if said motion is filed with the Secretary of the Commission on or before May 11, 1953. Upon completion of any such hearing in this matter the Hearing Examiner shall prepare a recommended decision pursuant to Rule IX of the rules of practice unless such decision is waived.

It is further ordered, That in the event registrant does not appear personally or through a representative at the time and place herein set or as otherwise ordered, the Hearing Room Clerk shall file with the Records Officer of the Commission a written statement to that effect and thereupon the Commission will take the record under advisement for decision.

This order and notice shall be served on registrant personally or by registered mail forthwith, and published in the FEDERAL REGISTER not later than fifteen (15) days prior to May 18, 1953.

In the absence of an appropriate waiver, no officer or employee of the Commission engaged in the performance of investigative or prosecuting functions in this or any factually related proceeding will be permitted to participate or advise in the decision upon the matter except as witness or counsel in proceedings held pursuant to notice. Since this proceeding is not "rule making" within the meaning of section 4 (c) of the Administrative Procedure Act, it is not deemed to be subject to the provisions of

the section delaying the effective date of any final Commission action.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2798; Filed, Apr. 2, 1953; 8:49 a. m.]

MORENO SECURITIES CO.

ORDER FOR PROCEEDINGS AND NOTICE OF HEARING

In the matter of Jose Moreno, doing business as Moreno Securities Company, 304 Crystal Arcade Building, Escolta, Manila, Philippine Islands.

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 27th day of March 1953.

I. The Commission's public official files disclose that Jose Moreno, doing business as Moreno Securities Company, a sole proprietor, hereinafter referred to as registrant, is registered as a broker-dealer pursuant to section 15 (b) of the Securities Exchange Act of 1934.

II. The Records Officer of the Commission has filed with the Commission a statement, a copy of which is attached hereto and made a part hereof,[1] stating that registrant did not file with the Commission reports of his financial condition during the calendar years 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951 and 1952, as required by section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted thereunder.

III. The information reported to the Commission by its Records Officer as set forth in Paragraph II hereof tends, if true, to show that registrant violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section.

IV. The Commission, having considered the aforesaid information, deems it necessary and appropriate in the public interest and for the protection of investors that proceedings be instituted to determine:

(a) Whether the statement referred to in Paragraph II hereof is true;

(b) Whether registrant has wilfully violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section;

(c) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, it is in the public interest to revoke registration of registrant; and

(d) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, pending final determination, it is necessary or appropriate in the public interest or for the protection of investors to suspend the registration of registrant.

V. *It is ordered,* That registrant be given an opportunity for hearing as set forth in Paragraph IV hereof on the 18th day of May 1953, at the main office of the Securities and Exchange Commission, located at 425 Second Street NW., Washington 25, D. C., before a Hearing Examiner to be designated by the Commission. On such date the Hearing Room Clerk in Room 193, North Building, will advise the parties and the Hearing Examiner as to the room in which such hearing will be held. The Commission will consider any motion with respect to a change of place of said hearing if said motion is filed with the Secretary of the Commission on or before May 11, 1953. Upon completion of any such hearing in this matter the Hearing Examiner shall prepare a recommended decision pursuant to Rule IX of the Rules of Practice unless such decision is waived.

It is further ordered, That in the event registrant does not appear personally or through a representative at the time and place herein set or as otherwise ordered, the Hearing Room Clerk shall file with the Records Officer of the Commission a written statement to that effect and thereupon the Commission will take the record under advisement for decision.

This order and notice shall be served on registrant personally or by registered mail forthwith, and published in the FEDERAL REGISTER not later than fifteen (15) days prior to May 18, 1953.

In the absence of an appropriate waiver, no officer or employee of the Commission engaged in the performance of investigative or prosecuting functions in this or any factually related proceeding will be permitted to participate or advise in the decision upon the matter except as witness or counsel in proceedings held pursuant to notice. Since this proceeding is not "rule making" within the meaning of section 4 (c) of the Administrative Procedure Act, it is not deemed to be subject to the provisions of the section delaying the effective date of any final Commission action.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2797; Filed, Apr. 2, 1953; 8:49 a. m.]

M. M. MORGAN

ORDER FOR PROCEEDINGS AND NOTICE OF HEARING

In the matter of M. M. Morgan, Post Office Box 188, Manila, Philippine Islands.

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 27th day of March 1953.

I. The Commission's public official files disclose that M. M. Morgan, a sole proprietor, hereinafter referred to as registrant, is registered as a broker-dealer pursuant to section 15 (b) of the Securities Exchange Act of 1934.

II. The Records Officer of the Commission has filed with the Commission a statement, a copy of which is attached hereto and made a part hereof,[1] stating that registrant did not file with the Commission reports of his financial condition during the calendar years 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951 and 1952, as required by section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted thereunder.

III. The information reported to the Commission by its Records Officer as set forth in Paragraph II hereof tends, if true, to show that registrant violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section.

IV. The Commission, having considered the aforesaid information, deems it necessary and appropriate in the public interest and for the protection of investors that proceedings be instituted to determine:

(a) Whether the statement referred to in Paragraph II hereof is true;

(b) Whether registrant has wilfully violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section;

(c) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, it is in the public interest to revoke registration of registrant; and

(d) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, pending final determination, it is necessary or appropriate in the public interest or for the protection of investors to suspend the registration of registrant.

V. *It is ordered,* That registrant be given an opportunity for hearing as set forth in Paragraph IV hereof on the 18th day of May 1953, at the main office of the Securities and Exchange Commission, located at 425 Second Street NW., Washington 25, D. C., before a Hearing Examiner to be designated by the Commission. On such date the Hearing Room Clerk in Room 193, North Building, will advise the parties and the Hearing Examiner as to the room in which such hearing will be held. The Commission will consider any motion with respect to a change of place of said hearing if said motion is filed with the Secretary of the Commission on or before May 11, 1953. Upon completion of any such hearing in this matter the Hearing Examiner shall prepare a recommended decision pursuant to Rule IX of the Rules of Practice unless such decision is waived.

It is further ordered, That in the event registrant does not appear personally or through a representative at the time and place herein set or as otherwise ordered, the Hearing Room Clerk shall file with the Records Officer of the Commission a written statement to that effect and thereupon the Commission will take the record under advisement for decision.

This order and notice shall be served on registrant personally or by registered mail forthwith, and published in the FEDERAL REGISTER not later than fifteen (15) days prior to May 18, 1953.

In the absence of an appropriate waiver, no officer or employee of the Commission engaged in the performance of investigative or prosecuting functions in this or any factually related proceeding will be permitted to participate or advise in the decision upon the matter except as witness or counsel in proceedings held pursuant to notice. Since this proceeding is not "rule making" within the meaning of section 4 (c) of the Administrative Procedure Act, it is not

[1] Filed as part of the original document.

deemed to be subject to the provisions of the section delaying the effective date of any final Commission action.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2796; Filed, Apr. 2, 1953; 8:49 a. m.]

JOSEPH REICH

ORDER FOR PROCEEDINGS AND NOTICE OF HEARING

In the matter of Joseph Reich, 210 Crystal Arcade, Escolta, Manila, Philippine Islands.

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 27th day of March 1953.

I. The Commission's public official files disclose that Joseph Reich, a sole proprietor, hereinafter referred to as registrant, is registered as a broker-dealer pursuant to section 15 (b) of the Securities Exchange Act of 1934.

II. The Records Officer of the Commission has filed with the Commission a statement, a copy of which is attached hereto and made a part hereof,[1] stating that registrant did not file with the Commission reports of his financial condition during the calendar years 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951 and 1952 as required by section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted thereunder.

III. The information reported to the Commission by its Records Officer as set forth in Paragraph II hereof tends, if true, to show that registrant violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section.

IV. The Commission, having considered the aforesaid information, deems it necessary and appropriate in the public interest and for the protection of investors that proceedings be instituted to determine:

(a) Whether the statement referred to in Paragraph II hereof is true;

(b) Whether registrant has wilfully violated section 17 (a) of the Securities Exchange Act of 1934 and Rule X-17A-5 adopted under said section;

(c) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, it is in the public interest to revoke registration of registrant; and

(d) Whether, pursuant to section 15 (b) of the Securities Exchange Act of 1934, pending final determination, it is necessary or appropriate in the public interest or for the protection of investors to suspend the registration of registrant

V. *It is ordered*, That registrant be given an opportunity for hearing as set forth in Paragraph IV hereof on the 18th day of May 1953 at the main office of the Securities and Exchange Commission, located at 425 Second Street NW., Washington 25, D. C., before a Hearing Examiner to be designated by the Commission. On such date the Hearing Room Clerk in Room 193, North Building, will advise the parties and the Hearing Examiner as to the room in which such hearing will be held. The Commission will consider any motion with respect to a change of place of said hearing if said motion is filed with the Secretary of the Commission on or before May 11, 1953. Upon completion of any such hearing in this matter the Hearing Examiner shall prepare a recommended decision pursuant to Rule IX of the Rules of Practice unless such decision is waived.

It is further ordered, That in the event registrant does not appear personally or through a representative at the time and place herein set or as otherwise ordered, the Hearing Room Clerk shall file with the Records Officer of the Commission a written statement to that effect and thereupon the Commission will take the record under advisement for decision.

This order and notice shall be served on registrant personally or by registered mail forthwith, and published in the FEDERAL REGISTER not later than fifteen (15) days prior to May 18, 1953.

In the absence of an appropriate waiver, no officer or employee of the Commission engaged in the performance of investigative or prosecuting functions in this or any factually related proceeding will be permitted to participate or advise in the decision upon the matter except as witness or counsel in proceedings held pursuant to notice. Since this proceeding is not "rule making" within the meaning of section 4 (c) of the Administrative Procedure Act, it is not deemed to be subject to the provisions of the section delaying the effective date of any final Commission action.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-2795; Filed, Apr. 2, 1953; 8:48 a. m.]

[1] Filed as part of the original document.

HOUSING AND HOME FINANCE AGENCY

Office of the Administrator

COMMISSIONER, COMMUNITY FACILITIES AND SPECIAL OPERATIONS

DELEGATION OF AUTHORITY WITH RESPECT TO HOUSING FOR EDUCATIONAL INSTITUTIONS

1. The Commissioner, Community Facilities and Special Operations (hereinafter called "Commissioner"), is hereby authorized to take the following actions, on behalf of the Housing and Home Finance Administrator (hereinafter called "Administrator"), in connection with carrying out the program authorized under Title IV of the Housing Act of 1950 (64 Stat. 77, 12 U. S. C. 1749-1749c) designed to assist educational institutions of higher learning in providing housing for their students and faculties:

a. Authorize disbursements of funds within amounts established in contracts executed by the Administrator;

b. Take all other actions requisite or needed in the administration of the program authorized under Title IV of the Housing Act of 1950: *Provided, however*, That in connection with such program no officer or employee of the Housing and Home Finance Agency other than the Administrator (or the Acting Administrator) shall issue notes or other obligations for purchase by the Secretary of the Treasury, authorize loans, make loan or other contractual commitments, execute loan or other agreements or amendments thereto, or make determinations with respect to a breach of contract, except that the Commissioner, when in his judgment such action will not be detrimental to the interests of the Government, may execute waivers modifying the provisions in a loan agreement as to the specified percentage of the Government loan which may be advanced to an educational institution before the institution's obligations for the loan have been issued, subject to the limitation that the aggregate of such advances shall in no event exceed 75 percent of the amount of the loan approved by the Administrator;

c. Redelegate any of the authority herein delegated to such officers and employees of the Office of the Administrator as he may select.

2. This delegation of authority supersedes the prior delegation of authority, effective January 23, 1951, published at 16 F. R. 741 (January 26, 1951).

(Reorg. Plan No. 3 of 1947, 61 Stat. 954 (1947); 64 Stat. 77-80 (1950), 12 U. S. C., 1946 ed. Sup. V. 1749-1749c; 62 Stat. 1283-85 (1948), as amended by 64 Stat. 80 (1950), 12 U. S. C., 1946 ed. Sup. V. 1701c)

Effective this 3d day of April 1953.

[SEAL] ALBERT M. COLE, *Housing and Home Finance Administrator.*

[F. R. Doc. 53-2823; Filed, Apr. 2, 1953; 8:54 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 27938]

MIXED CARLOADS MERCHANDISE FROM CINCINNATI, OHIO, TO GREENSBORO, N. C.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Merchandise, in mixed carloads.

From: Cincinnati, Ohio.

To: Greensboro, N. C.

Grounds for relief: Carrier competition, circuitous routes, to meet motor truck competition.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, ICC No. 1305, supl. 19.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days

from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2805; Filed, Apr. 2, 1953; 8:51 a. m.]

[4th Sec. Application 27939]

DENATURED ALCOHOL, ETC., FROM KANSAS CITY, MO., TO SIOUX FALLS, S. DAK.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: W. J. Prueter, Agent, for carriers parties to schedule listed below.

Commodities involved: Denatured alcohol and denatured alcohol solvent, also proprietary antifreeze preparation, carloads.

From: Kansas City, Mo.

To: Sioux Falls, S. Dak.

Grounds for relief: Carrier competition, circuitous routes.

Schedules filed containing proposed rates: C. J. Hennings, Alternate Agent, ICC No. A-3748, supl. 83.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2806; Filed, Apr. 2, 1953; 8:51 a. m.]

[Sec. Application 27940]

SAND FROM MISSOURI AND ARKANSAS TO LOUISVILLE, KY.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Sand, in carloads.

From: Crystal City, Klondike, Ludwig, Pacific and Sand Pit, Mo., and Guion, Ark.

To: Louisville, Ky.

Grounds for relief: Carrier competition, circuitous routes.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, ICC No. 3736, supl. 217.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2807; Filed, Apr. 2, 1953; 8:51 a. m.]

[4th Sec. Application 27941]

SODA ASH FROM SALTVILLE, VA., TO PORT WENTWORTH, GA.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for the Atlantic Coast Line Railroad Company and other carriers named in the application.

Commodities involved: Soda Ash, in carloads.

From: Saltville, Va.

To: Port Wentworth, Ga.

Grounds for relief: carrier competition, circuitous routes.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, ICC No. 1251, supl. 45.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2808; Filed, Apr. 2, 1953; 8:51 a. m.]

[4th Sec. Application 27942]

ALCOHOL FROM LOUISIANA TO WISCONSIN

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: W. P. Emerson, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Alcohol and related articles, carloads.

From: Baton Rouge, Gretna, New Orleans, North Baton Rouge and Westwego, La.

To: Merrimac and Merrimac (Sauk City-Prairie Du Sac-Badger Ordinance Works, Wis.).

Grounds for relief: Carrier competition, circuitous routes.

Schedules filed containing proposed rates: W. P. Emerson, Jr., Agent, ICC No. 400, supl. 61.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2809; Filed, Apr. 2, 1953; 8:51 a. m.]

[4th Sec. Application 27943]

ACETIC ACID AND ANHYDRIDE FROM ARKANSAS AND TEXAS TO OCONTO, WIS.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Acetic acid, glacial or liquid, and acetic anhydride, carloads.

From: Crossett, Ark., Bishop, Brownsville, Houston, Kings Mill and Texas City, Tex.

To: Oconto, Wis.

Grounds for relief: Carrier competition, circuitous routes, to maintain rates constructed on basis of a short-line distance formula.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, ICC No. 3967, supl. 216; F. C. Kratzmeir, Agent, ICC No. 3908, supl. 139.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2810; Filed, Apr. 2, 1953; 8:52 a. m.]

[4th Sec. Application 27944]

COTTONSEED OIL AND RELATED OILS FROM MEMPHIS, TENN., TO INDIANAPOLIS, IND.

APPLICATION FOR RELIEF

MARCH 31, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Cottonseed oil and related vegetables, fish and sea animal oils, carloads.

From: Memphis, Tenn.

To: Indianapolis, Ind.

Grounds for relief: Carrier competition, circuitous routes.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, ICC No. 1194, supl. 32.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 53-2811; Filed, Apr. 2, 1953; 8:52 a. m.]

[Rev. S. O. 562, Taylor's I. C. C. Order 13]

UNION RAILROAD CO.

REROUTING AND DIVERSION OF TRAFFIC

In the opinion of Charles W. Taylor, Agent, the Union Railroad Company, account work stoppage, is unable to transport traffic routed over its line: *It is ordered,* That:

(a) Rerouting traffic: The Union Railroad Company being unable to transport traffic routed over its line, because of work stoppage, and its direct connections are hereby authorized to divert or reroute such traffic over any available route to expedite the movement, regardless of the routing shown on the waybill. The billing covering all such cars rerouted shall carry a reference to this order as authority for the rerouting.

(b) Concurrence of receiving roads to be obtained. The railroads desiring to divert or reroute traffic under this order shall confer with the proper transportation officer of the railroad or railroads to which such traffic is to be diverted or rerouted, and shall receive the concurrence of such other railroads before the rerouting or diversion is ordered.

(c) Notification to shippers: Each carrier rerouting cars in accordance with this order shall notify each shipper at the time each car is rerouted or diverted and shall furnish to such shipper the new routing provided under this order.

(d) Inasmuch as the diversion or rerouting of traffic by said Agent is deemed to be due to carrier's disability, the rates applicable to traffic diverted or rerouted by said Agent shall be the rates which were applicable at the time of shipment on the shipments as originally routed.

(e) In executing the directions of the Commission and of such Agent provided for in this order, the common carriers involved shall proceed even though no contracts, agreements, or arrangements now exist between them with reference to the divisions of the rates of transportation applicable to said traffic; divisions shall be, during the time this order remains in force, those voluntarily agreed upon by and between said carriers; or upon failure of the carriers to so agree, said divisions shall be those hereafter fixed by the Commission in accordance with pertinent authority conferred upon it by the Interstate Commerce Act.

(f) Effective date: This order shall become effective at 9:00 a. m., March 31, 1953.

(g) Expiration date: This order shall expire at 11:59 p. m., April 15, 1953, unless otherwise modified, changed, suspended or annulled.

It is further ordered, That this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., March 31, 1953.

INTERSTATE COMMERCE COMMISSION,
CHARLES W. TAYLOR,
Agent.

[F. R. Doc. 53-2837; Filed, Apr. 2, 1953; 8:56 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-805, G-982, G-1073, G-1661]

TENNESSEE GAS TRANSMISSION CO.

ORDER CONSOLIDATING PROCEEDINGS AND FIXING DATE OF HEARING

MARCH 26, 1953.

On January 30, 1953, Tennessee Gas Transmission Company (Applicant) a Delaware corporation having its principal place of business at Houston, Texas, filed petitions pursuant to section 16 of the Natural Gas Act to amend (1) an order in Docket No. G-805, issued February 14, 1947, granting a certificate of public convenience and necessity, (2) an order in Docket No. G-982, issued March 24, 1948, granting a certificate of public convenience and necessity, (3) an order in Docket No. G-1073, issued November 3, 1948, granting a certificate of public convenience and necessity and (4) an order in Docket No. G-1661 issued June 27, 1951, granting a certificate of public convenience and necessity, all as more fully described in petitions on file with the Commission and open to public inspection.

The Commission finds:

(1) Good cause exists, and it is appropriate and necessary in carrying out the provisions of the Natural Gas Act to consolidate the proceedings at Docket Nos. G-805, G-982, G-1073, and G-1661 for purpose of hearing as hereinafter provided.

(2) The above-docketed proceedings are proper ones for disposition under the provisions of § 1.32 (b) [18 CFR 1.32 (b)] of the Commission's rules of practice and procedure, Applicant having requested that its petitions be heard under the

shortened procedure provided by the aforesaid rule for noncontested proceedings, and no request to be heard, protest or petition having been filed subsequent to the giving of due notice of each petition so filed at the docket shown above, including publication thereof, at Docket No. G–805 on March 4, 1953 (18 F. R. 1218), and at Docket Nos. G–982, G–1073 and G–1661 on March 4, 1953 (18 F. R. 1219).

The Commission orders:

(A) The proceedings in Docket Nos. G–805, G–982, G–1073 and G–1661 be and the same are hereby consolidated for the purpose of hearing.

(B) Pursuant to authority contained in and by virtue of the jurisdiction conferred on the Federal Power Commission by sections 7, 15 and 16 of the Natural Gas Act, and the Commission's rules of practice and procedure, a public hearing be held on April 22, 1953 at 9:45 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters above and the issues presented by such petitions: *Provided, however,* That the Commission may, after a noncontested hearing, forthwith dispose of the consolidated proceedings pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: March 30, 1953.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53–2791; Filed, Apr. 2, 1953; 8:47 a. m.]

[Docket No. G–934]

CITIES SERVICE GAS CO.

NOTICE OF ORDER MODIFYING AND AMENDING CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

MARCH 31, 1953.

Notice is hereby given that on March 30, 1953, the Federal Power Commission issued its order entered March 26, 1953, modifying and amending certificate of public convenience and necessity (12 F. R. 7869) in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53–2816; Filed, Apr. 2, 1953; 8:53 a. m.]

[Docket Nos. G–1175, G–1261, G–1448, G–1787, G–1850, G–1893, G–1901, G–1905, G–1911, G–1931, G–1936, G–1943, G–1952]

ATLANTIC SEABOARD CORP. ET AL.

ORDER FIXING DATE FOR ORAL ARGUMENT

MARCH 26, 1953.

In the matters of Atlantic Seaboard Corporation, Docket Nos. G–1175, G–1850; Virginia Gas Transmission Corporation, Docket No. G–1261; Shenandoah Gas Company, Docket No. G–1448; the Ohio Fuel Gas Company, Docket Nos. G–1787, G–1911, G–1931, G–1936, G–1943; the Manufacturers Light and Heat Company, Natural Gas Company of West Virginia, and Home Gas Company, Docket No. G–1893; Rockland Light and Power Company, Docket No. G–1901; Central Kentucky Natural Gas Company, Docket No. G–1905; United Fuel Gas Company, Docket No. G–1952.

On March 5, 1953, the Presiding Examiner filed his decision in the above-entitled proceedings, which decision was served on all parties on March 5, 1953.

Thereafter, on March 24, 1953, Rockland Light and Power Company filed its exceptions to said decision pursuant to the provisions of § 1.31 of the Commission's rules of practice and procedure (18 CFR 1.31). Exceptions were also filed on March 25, 1953, by the Public Service Commission of the State of New York, by the United Gas Improvement Company (formerly Allentown-Bethlehem Gas Company, The Harrisburg Gas Company, Consumers Gas Company and Lancaster County Gas Company, interveners herein), and by Staff Counsel, and on March 26, 1953 by Shenandoah Gas Company.

The Commission finds: It is appropriate for carrying out the provisions of the Natural Gas Act that oral argument be had before the Commission concerning the matters involved and the issues presented by said exceptions to the Presiding Examiner's decision filed herein.

The Commission orders:

(A) Oral argument be had before the Commission on April 15, 1953, at 10:00 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by said exceptions to the Presiding Examiner's decision.

(B) Those parties to this proceeding who intend to participate in the oral argument shall notify the Secretary of the Commission on or before April 10, 1953, of such intention and of the time requested for presentation of their argument.

Date of issuance: March 30, 1953.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53–2814; Filed, Apr. 2, 1953; 8:52 a. m.]

[Docket No. G–1891]

SOUTHEASTERN KANSAS GAS CO., INC.

NOTICE OF FINDINGS AND ORDER

MARCH 31, 1953.

Notice is hereby given that on March 30, 1953, the Federal Power Commission issued its order entered March 26, 1953, issuing certificate of public convenience and necessity in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53–2817; Filed, Apr. 2, 1953; 8:53 a. m.]

[Docket No. G–2141]

SOUTHERN NATURAL GAS CO.

ORDER FIXING HEARING ON REVISED TARIFF SHEETS AND SUSPENDING IN PART SUCH REVISED TARIFF SHEETS

MARCH 27, 1953.

On March 2, 1953, Southern Natural Gas Company (Southern Natural) tendered for filing First Revised Sheets Nos. 5, 9, 13, 28, 31, 34, 36–B, Second Revised Sheets Nos. 16, 20, 24, of First Revised Volume No. 1 of Southern Natural's FPC Gas Tariff, proposed to take effect on April 1, 1953.[1]

By said filing, Southern Natural proposes a system-wide increase of four cents per Mcf in the commodity component of Southern Natural's existing rates. According to studies submitted with the proposed filing, the proposed increase would result in additional revenues to Southern Natural of $6,313,351, for the year ending March 31, 1954.

For a number of reasons, it cannot now be determined that the proposed increase is justified. These include the fact that the aforementioned studies show that the proposed increase is based, inter alia, on certain claimed costs, such as adjusted purchase gas costs, return, working capital, and federal income taxes, which may not be justified as proposed. Also, Southern Natural's classification of costs to the demand and commodity components and its cost allocations may not be proper for the purpose of allocating costs among jurisdictional customers and for the purpose of allocating costs between jurisdictional and nonjurisdictional business.

Accordingly, Southern Natural's proposed increase may be unjust, unreasonable, unduly discriminatory or preferential and may place an undue burden upon ultimate consumers of natural gas.

Clause 3.2 (b) (1) and (2), in First Revised Sheets Nos. 5, 9, and 13, pertaining to Rate Schedules CD–1, CD–2, and CD–3, respectively, relates to the change in the rate for the sale of natural gas for resale for industrial consumers only, and thus is not subject to suspension by the Commission under section 4 (e) of the Natural Gas Act.[2]

Protests have been received from Georgia Public Service Commission and from many of Southern Natural's resale customers.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing, pursuant to section 4 of the act concerning the lawfulness of the rates, charges, classifications and services, and the rules, regulations, and contracts relating thereto, contained in Southern Natural's FPC Gas Tariff, First Revised Volume No. 1, and as proposed to be changed by First Revised Sheets Nos. 5, 9, 13, 28, 31, 34, and 36–B, Second Revised Sheets Nos. 16, 20, 24; and that said tariff sheets be

[1] Such proposed effective date would provide less than the statutory 30-day notice.

[2] The pertinent provision is: * * * *Provided,* That the Commission shall not have authority to suspend the rate, charge, classification, or service for the sale of natural gas for resale for industrial use only; * * *.

suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority contained in section 4 of the Natural Gas Act, a public hearing be held in this proceeding at a time and place to be fixed by further order of the Commission concerning the lawfulness of the rates, charges, classifications and services, and the rules, regulations, and contracts relating thereto, contained in Southern Natural's FPC Gas Tariff, First Revised Volume No. 1, and as proposed to be changed by Southern Natural's rate filing of March 2, 1953.

(B) Pending a hearing and decision thereon, Southern Natural's First Revised Sheets Nos. 5, 9, 13, 28, 31, 34, and 36-B, Second Revised Sheets Nos. 16, 20, 24, of First Revised Volume No. 1 of its FPC Gas Tariff, save and except Clause 3.2 (b) (1) and (2) in First Revised Sheets Nos. 5, 9, and 13, tendered for filing on March 2, 1953, be and the same are hereby suspended, pursuant to section 4 of the Natural Gas Act, and their use deferred until September 2, 1953,[3] unless otherwise ordered by the Commission, and until such further time as such filing may be made effective in accordance with the provisions of the Natural Gas Act.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the Commission's rules of practice and procedure.

Date of issuance: March 30, 1953.

By the Commission.[4]

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 53-2815; Filed, Apr. 2, 1953; 8:53 a. m.]

UNITED STATES TARIFF COMMISSION

[Investigation No. 23]

MUSTARD SEEDS

NOTICE OF HEARING

A public hearing has been ordered by the United States Tariff Commission to be held in the Hearing Room, Tariff Commission Building, Eighth and E Streets NW., Washington, D. C., beginning at 10 a. m. on May 18, 1953, in the investigation with respect to Mustard Seeds instituted on February 12, 1953, under section 7 of the Trade Agreements Extension Act of 1951 (18 F. R. 943).

Request to appear. Parties desiring to appear, to produce evidence, and to be heard at the public hearing should file request in writing with the Secretary, United States Tariff Commission, Washington 25, D. C., in advance of the date of the hearing.

I certify that the above public hearing was ordered by the Tariff Commission on the 30th day of March 1953.

Issued: March 31, 1953.

[SEAL] DONN N. BENT, *Secretary.*

[F. R. Doc. 53-2812; Filed, Apr. 2, 1953; 8:52 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

[Vesting Order No. 19188]

OTTO AND DOROTHEA FISCHER

In re: Rights of Otto Fischer and Dorothea Fischer under Insurance Contract. File No. F-28-28248-H-1.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Otto Fischer and Dorothea Fischer, whose last known address is Rosshaustrasse 14, Stuttgart-Degerloch, Germany, on or since December 11, 1941, and prior to January 1, 1947, were residents of Germany and are, and prior to January 1, 1947, were nationals of a designated enemy country (Germany);

2. That the net proceeds due or to become due under a contract of insurance evidenced by Policy No. N-675409 issued by the Aetna Life Insurance Company, Hartford, Connecticut, to Otto Fischer, and any and all other benefits and rights of any kind or character whatsoever under or arising out of said contract of insurance except those of Frida Fischer, a resident of the United States, and of the aforesaid Aetna Life Insurance Company, together with the right to demand, enforce, receive and collect the same is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by Otto Fischer and Dorothea Fischer, the aforesaid nationals of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the persons named in subparagraph 1 hereof be treated as persons who are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "nationals" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 5, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 53-2824; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19197]

LOUIS KNERR

In re: Estate of Louis Knerr, deceased. File No. D-28-13115; E. and T. 17229.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Otto Knerr, Herman Knerr, Alfred Knerr, Albert Knerr, Frieda Sholber, Amalie Knerr, Elsa Knerr, Anna Knerr, Jakob Knerr, Fritz Knerr (a/k/a Friedrich), Gustav Knerr, Emil Knerr, Otto Knerr, Frieda Christman, Lina Hoh, Johanna Becker, Emma Rauch, and Johanna Sandmeyer, whose last known address is Germany, on or since December 11, 1941, and prior to January 1, 1947, were residents of Germany and are, and prior to January 1, 1947, were nationals of a designated enemy country (Germany);

2. That the domiciliary personal representatives, heirs, next of kin, legatees and distributees, names unknown, of Elma Emmerick, deceased and of Philipp Knerr, deceased, who there is reasonable cause to believe are, and on or since December 11, 1941, and prior to January 1, 1947, were nationals of a designated enemy country (Germany);

3. That all right, title, interest and claim of any kind or character whatsoever of the persons identified in subparagraphs 1 and 2 hereof, and each of them, in and to the Estate of Louis Knerr, deceased, is property which is, and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of or owing to, or which is evidence of ownership or control by the aforesaid nationals of a designated enemy country (Germany);

4. That such property is in the process of administration by Oscar F. Seegmuller and Albert M. Christensen, executors, acting under the judicial supervision of the Circuit Court, Probate Department, Multnomah County, Oregon;

and it is hereby determined:

5. That the national interest of the United States requires that the persons named in subparagraphs 1 and 2 hereof,

[3] To allow the full 30 days' notice required by the act, the proper effective date must be no earlier than April 2, 1953, and those rates not being suspended herein shall go into effect no earlier than April 2, 1953.

[4] Chairman Buchanan and Commissioner Doty dissenting in part. Opinions filed as part of the original document.

and each of them, be treated as persons who are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2825; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19198]

PAULA MEZ-RIOTTE

In re: Estate of Paula Mez-Riotte, deceased. File No. D-28-12929; E. and T. sec. 17219.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Hugo Beiswanger, Liselotte Weichert, and Erich Mez, who on or since December 11, 1941, and prior to January 1, 1947, were residents of Germany and are, and prior to January 1, 1947, were nationals of a designated enemy country (Germany);

2. That the property described as follows: All property in the possession of Bernard Bernstein, as ancillary administrator, c. t. a., of the Estate of Paula Mez-Riotte, deceased, other than the part thereof payable to Ella Kaiser as legatee under the will of Paula Mez-Riotte, and except for expenses of ancillary administration, is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, or which is evidence of ownership or control by, the aforesaid nationals of a designated enemy country (Germany);

3. That such property is in the possession of Bernard Bernstein, ancillary administrator of the Estate of Paula Mez-Riotte, acting under the judicial supervision of the Surrogate's Court, New York County, New York.

and it is hereby determined:

4. That the national interest of the United States requires that the persons identified in subparagraph 1 hereof be treated as persons who are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2826; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19199]

JOHN RIEFE

In re: Estate of John Riefe, deceased, File No. D 28-7635.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Bertha Riefe whose last known address is Germany, on or since December 11, 1941, and prior to January 1, 1947, was a resident of Germany and is, and prior to January 1, 1947, was a national of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the person identified in subparagraph 1 hereof, in and to the estate of John Riefe, deceased, is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

3. That such property is in the process of administration by Bertha Riefe, as sole surviving Executor and Trustee, acting under the judicial supervision of the Surrogate's Court of New York County, New York;

and it is hereby determined:

4. That the national interest of the United States requires that the person identified in subparagraph 1 hereof be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2827; Filed, Apr. 2, 1953; 8:55 a.m.]

[Vesting Order 19200]

EMILIE WEBER

In re: Estate of Emilie Weber, deceased. File No. D-28-13153; E & T No. 17257.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Alfred Nonnenprideger, Elsie Stibbe, Alma Hasse, Gustave Busse, Bruno Draynorius and Ida Draynorius, whose last known address is Germany, on or since December 11, 1941, and prior to January 1, 1947, were residents of Germany and are, and prior to January 1, 1947, were nationals of a designated enemy country (Germany);

2. That the domiciliary personal representatives, heirs, next-of-kin, legatees and distributees, names unknown, of Bruno Draynorius, deceased, and of Ida Draynorius, deceased, who there is reasonable cause to believe are and on or since December 11, 1941, and prior to January 1, 1947, were residents of Germany and are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

3. That all right, title, interest and claim of any kind or character whatsoever of the persons identified in subparagraphs 1 and 2 hereof, and each of them, in and to the Estate of Emilie Weber, deceased, is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by the aforesaid nationals of a designated enemy country (Germany);

4. That such property is in the process of administration by Anthony Molthen,

administrator, acting under the judicial supervision of the County Court, Milwaukee County, Wisconsin;

and it is hereby determined:

5. That the national interest of the United States requires that the persons identified in subparagraphs 1 and 2 hereof be treated as persons who are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2828; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19201]

JOHN B. WOERNDLE

In re: Estate of John B. Woerndle, deceased. D 28-10714

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Donat Woerndle, whose last known address is Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the person named in subparagraph 1 hereof in and to the estate of John B. Woerndle, deceased, which is in the process of administration by Joseph Woerndle, administrator acting under the judicial supervision of the Circuit Court of the State of Oregon, for the County of Multnomah, Probate Department, is property which is, and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by Donat Woerndle, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that such person be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2829; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19202]

DEUTSCH-ASIATISCHE BANK

In re: Debt owing to Deutsch-Asiatische Bank, also known at Deutsche-Asiatische Bank. F-28-1274-C-1.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Deutsch-Asiatische Bank also known as Deutsche-Asiatische Bank whose last known address is Berlin 8, Germany, is a corporation, partnership, association or other business organization, which on or since December 11, 1941, and prior to January 1, 1947, was organized under the laws of, and had its principal place of business in Germany, and is, and prior to January 1, 1947, was a national of a designated enemy country (Germany);

2. That the property described as follows: That certain debt or other obligation of the Guaranty Trust Company of New York, 190 Broadway, New York 15, New York, arising out of payments recovered under awards by the Mixed Claims Commission and representing claims of the Deutsch-Asiatische Bank against the said Guaranty Trust Company together with any and all accruals to the aforesaid debt or other obligation and any and all rights to demand, enforce and collect the same,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by Deutsch-Asiatische Bank also known as Deutsche-Asiatische Bank, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person identified in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2830; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19203]

UNKNOWN GERMAN NATIONALS

In re: United States coin owned by unknown German nationals. F-28-31520.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That the persons referred to in subparagraph 2 hereof, who if individuals, there is reasonable cause to believe on or since January 11, 1941, and prior to January 1, 1947, were residents of Germany, and which, if corporations, partnerships, associations or other business organizations, there is reasonable cause to believe on or since December 11, 1941, and prior to January 1, 1947, were organized under the laws of, and had their principal places of business in Germany, are, and prior to January 1, 1947, were, nationals of a designated enemy country (Germany);

2. That the property described as follows: Currency in the amount of $4.63 shipped on or about April 28, 1951, by the Bank Deutscher Laender, Frankfurt/Main, Germany to the Federal Reserve Bank of New York and presently in the

custody of the Attorney General of the United States;

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by the persons referred to in subparagraph 1 hereof, the aforesaid nationals of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the persons referred to in subparagraph 1 hereof, be treated as persons who are and prior to January 1, 1947, were nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2831; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19204]

DEUTSCH-SUDAMERIKANISCHE BANK

In re: Bank account owned by Deutsch-Sudamerikanische Bank, A. G. also known as Deutsch Suedamerikanische Bank, A. G. and as Deutsche Sudamerikanische Bank, Aktiengesellschaft. F-28-857-E-3.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Deutsch-Sudamerikanische Bank, A. G., also known as Deutsch Suedamerikanische Bank, A. G., and as Deutsche Sudamerikanische Bank, Aktiengesellschaft, the last known address of which is Mohrenstrasse 20-21, Berlin W. 8, Germany, is a corporation, partnership, association, or other business organization which on or since December 11, 1941, and prior to January 1, 1947, was organized under the laws of and had its principal place of business in Germany and is, and prior to January 1, 1947, was, a national of a designated enemy country (Germany);

2. That the property described as follows: That certain debt or other obligation of the Guaranty Trust Company of New York, 140 Broadway, New York 15, New York, arising out of a Dollar Account, entitled Deutsch-Suedamerikanische Bank, maintained with the aforesaid company, and any and all rights to demand, enforce and collect the same,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person referred to in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2832; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19205]

ANNA KLUGE

In re: Stock owned by Anna Kluge. F-28-23198, A-1, E-1.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Anna Kluge who is a citizen of Germany, on or since December 11, 1941, and prior to January 1, 1947, was a resident of Germany, and is, and prior to January 1, 1947, was, a national of a designated enemy country (Germany);

2. That the property described as follows: One and fifty-five one hundredths (1 55/100ths) of a share of no par capital stock of Standard Oil Company of California, 225 Bush Street, San Francisco 20, California, a corporation organized under the laws of the State of Delaware, evidenced by certificates numbered SFC 413259 for one (1) share, B 97196 for fifty one hundredths of a share, and B 86979 for five one hundredths of a share, owned by Anna Kluge, and presently in the custody of J. Barth & Co., 482 California Street, San Francisco 4, California, together with all declared and unpaid dividends thereon,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Anna Kluge, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person referred to in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2833; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19207]

FRANZ RUF

In re: Securities owned by Franz Ruf. F-28-32073.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Franz Ruf, whose last known address is 26 Gerbersteig, Weingarten, Wuerttemberg, Germany, on or since December 11, 1941, and prior to January 1, 1947, was a resident of Germany and is, and prior to January 1, 1947, was a national of a designated enemy country (Germany);

2. That the property described as follows: Those certain debts or other obli-

gations matured or unmatured evidenced by Two (2) 5 percent Oregon California Railroad Company 1st Mortgage gold bonds, due 1927, having an aggregate face value of $2,000.00, and numbered 12008 and 14161, together with any and all accruals to the aforesaid debts or other obligations, and any and all rights to demand, enforce and collect the same, and any and all rights in and under said bonds,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Franz Ruf, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person referred to in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2835; Filed Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19206]

BERENT NILSEN

In re: Debts owing to Berent Nilsen, also known as H. B. Nilson and as Harald Berent Nilsen.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That Berent Nilsen, also known as H. B. Nilsen and as Harald Berent Nilsen whose last known address is Andreasstrasse 15, Hamburg, Germany, on or since December 11, 1941, and prior to January 1, 1947, was a resident of Germany and is and prior to January 1, 1947, was a national of a designated enemy country (Germany);

2. That the property described as follows:

a. That certain debt or other obligation matured or unmatured evidenced by a 4 percent General Mortgage 100 year Atchison Topeka and Santa Fe Railway Company Bond, numbered M79420 of $1,000.00 face value, together with any and all accruals to the aforesaid debt or other obligation, and any and all rights to demand, enforce and collect the same and any and all rights in and under said bond, and

b. That certain debt or other obligation matured or unmatured evidenced by a 50 year 4½ percent Southern Pacific Co. Gold bond due 1981, numbered 11667, of $1,000.00 face value together with any and all accruals to the aforesaid debt or other obligation, all rights to demand, enforce and collect the same and any and all rights in and under said bond,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by Berent Nilsen, also known as H. B. Nilsen and as Harald Berent Nilsen, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person identified in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2834; Filed, Apr. 2, 1953; 8:55 a. m.]

[Vesting Order 19208]

M. M. WARBURG & CO.

In re: Bank account owned by M. M. Warburg & Co. F-28-1688-E-7.

Under the authority of the Trading With the Enemy Act, as amended (50 U. S. C. App. and Sup. 1-40); Public Law 181, 82d Congress, 65 Stat. 451; Executive Order 9193, as amended by Executive Order 9567 (3 CFR 1943 Cum. Supp.; 3 CFR 1945 Supp.); Executive Order 9788 (3 CFR 1946 Supp.) and Executive Order 9989 (3 CFR 1948 Supp.), and pursuant to law, after investigation, it is hereby found:

1. That M. M. Warburg & Co., whose last known address is Hamburg, Germany, is a corporation, partnership, association, or other business organization which on or since December 11, 1941, and prior to January 1, 1947, was organized under the laws of and had its principal place of business in Germany and is, and prior to January 1, 1947, was a national of a designated enemy country (Germany);

2. That the property described as follows: That certain debt or other obligation of the Guaranty Trust Company of New York, 140 Broadway, New York 15, New York, arising out of a Dollar Account entitled, M. M. Warburg & Co., maintained with the aforesaid company, and any and all rights to demand, enforce and collect the same,

is property which is and prior to January 1, 1947, was within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the person referred to in subparagraph 1 hereof, be treated as a person who is and prior to January 1, 1947, was a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 30, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-2836; Filed, Apr. 2, 1953; 8:56 a. m.]